

LOCAL GOVERNMENT CODE

TITLE 8. ACQUISITION, SALE, OR LEASE OF PROPERTY

SUBTITLE B. COUNTY ACQUISITION, SALE, OR LEASE OF
PROPERTY

CHAPTER 262. PURCHASING AND CONTRACTING AUTHORITY
OF COUNTIES

SUBCHAPTER A. GENERAL PROVISIONS

Sec. 262.001. APPOINTMENT OF AGENT TO MAKE
CONTRACTS. (a) The commissioners court of a
county may appoint an agent to make a contract on
behalf of the county for:

(1) erecting or repairing a county
building;

(2) supervising the erecting or
repairing of a county building; or

(3) any other purpose authorized by
law.

(b) A contract or other act of an agent

appointed under this section that is properly executed on behalf of the county and is within the agent's authority binds the county to the contract for all purposes.

Acts 1987, 70th Leg., ch. 149, Sec. 1, eff. Sept. 1, 1987.

Sec. 262.002. AUTHORITY TO PURCHASE ROAD EQUIPMENT AND TIRES THROUGH COMPTROLLER. (a) The commissioners court of a county may purchase through the comptroller road machinery and equipment, tires, and tubes to be used by the county.

(b) The commission must purchase an item under this section on competitive bids and in accordance with any rules of the commission.

(c) A purchase under this section must be made on the requisition of the commissioners court. When the court sends the requisition to the commission, the court must include with the

requisition a general description of the item
desired and a certification of the funds
available to pay for the item.

(d) The commission may adopt rules to carry
out the purpose of this section.

Acts 1987, 70th Leg., ch. 149, Sec. 1, eff. Sept.
1, 1987.

Amended by:

Acts 2007, 80th Leg., R.S., Ch. 937 (H.B.
3560), Sec. 1.101, eff. September 1, 2007.

Acts 2007, 80th Leg., R.S., Ch. 937 (H.B.
3560), Sec. 1.102, eff. September 1, 2007.

The following section was amended by the 89th
Legislature. Pending publication of the current
statutes, see S.B. 1173, 89th Legislature,
Regular Session, for amendments affecting the
following section.

Sec. 262.003. SMALL, SOLE-SOURCE PURCHASE
EXEMPT FROM COMPETITIVE BIDDING. (a) Any law

that requires a county to follow a competitive procurement procedure in making a purchase requiring the expenditure of \$50,000 or less does not apply to the purchase of an item available for purchase from only one supplier.

(b) If a county makes a purchase covered by Subsection (a), the county auditor or other appropriate county officer or employee may not refuse payment for the purchase because a competitive bidding procedure was not followed.

Acts 1987, 70th Leg., ch. 149, Sec. 1, eff. Sept. 1, 1987. Amended by Acts 1993, 73rd Leg., ch. 757, Sec. 12, eff. Sept. 1, 1993; Acts 2001, 77th Leg., ch. 115, Sec. 4, eff. Sept. 1, 2001.

Amended by:

Acts 2009, 81st Leg., R.S., Ch. 1266 (H.B. 987), Sec. 3, eff. June 19, 2009.

Sec. 262.004. CONTRACT AND OTHER INSTRUMENTS VEST RIGHTS IN COUNTY; SUIT ON

CONTRACT OR OTHER INSTRUMENT. (a) A note, bond, bill, contract, covenant, agreement, or writing in which a person is bound to a county, to the court or commissioners of a county, or to another person for the payment of a debt or for the performance of a duty or another action for the county vests in the county the same right, interest, or action that would vest in any other person if the contract had been made with that other person.

(b) A suit may be initiated and prosecuted on an instrument covered by Subsection (a) in the name of a county, or in the name of the person to whom the document was made for the use of the county, in the same manner that any other person may sue on a similar document made to that person.

Acts 1987, 70th Leg., ch. 149, Sec. 1, eff. Sept. 1, 1987.

Sec. 262.005. APPLICATION OF OTHER LAW.

The purchasing requirements of Section 361.426, Health and Safety Code, apply to county purchases made under this chapter.

Added by Acts 1991, 72nd Leg., ch. 303, Sec. 18, eff. Sept. 1, 1991.

Sec. 262.006. LEAST COST REVIEW PROGRAM.

The commissioners court of a county may establish a least cost review program for public improvements to be constructed by the use of personnel, equipment, or facilities of the county that may exceed a cost of:

(1) \$100,000; or

(2) an amount less than \$100,000 as determined by the commissioners court.

Added by Acts 1999, 76th Leg., ch. 62, Sec. 13.11(f), eff. Sept. 1, 1999.

Sec. 262.007. SUIT AGAINST COUNTY ARISING

UNDER CERTAIN CONTRACTS. (a) A county that is a party to a written contract for engineering, architectural, or construction services or for goods related to engineering, architectural, or construction services may sue or be sued, plead or be impleaded, or defend or be defended on a claim arising under the contract. A suit on the contract brought by a county shall be brought in the name of the county. A suit on the contract brought against a county shall identify the county by name and must be brought in a state court in that county.

(b) The total amount of money recoverable from a county on a claim for breach of the contract is limited to the following:

(1) the balance due and owed by the county under the contract as it may have been amended, including any amount owed as compensation for the increased cost to perform the work as a direct result of owner-caused

delays or acceleration;

(2) the amount owed for change orders or additional work required to carry out the contract;

(3) reasonable and necessary attorney's fees that are equitable and just; and

(4) interest as allowed by law.

(c) An award of damages under this section may not include:

(1) consequential damages, except as allowed under Subsection (b) (1);

(2) exemplary damages; or

(3) damages for unabsorbed home office overhead.

(d) This section does not waive a defense or a limitation on damages available to a party to a contract, other than a bar against suit based on sovereign immunity.

(e) This section does not waive sovereign immunity to suit in federal court.

Acts 2003, 78th Leg., ch. 1203, Sec. 2, eff.
Sept. 1, 2003.

SUBCHAPTER B. PURCHASING AGENTS

Sec. 262.011. PURCHASING AGENTS. (a) A
board composed as provided by this subsection, by
majority vote, may appoint a suitable person to
act as the county purchasing agent. In a county
with a population of 150,000 or less, the board
is composed of the judges of the district courts
in the county and the county judge. In any other
county, the board is composed of three judges of
the district courts in the county and two members
of the commissioners court of the county unless
the county has fewer than three district court
judges, in which case the board is composed of
one district court judge and one member of the
commissioners court. If members of the board who
are district judges must be selected, the

selection is made by a majority vote of all the district judges in a county having more than one district judge. If members of the board who are members of the commissioners court must be selected, the selection is made by a majority vote of the commissioners court. The term of office of the county purchasing agent is two years.

(b) The board may remove the county purchasing agent from office.

(c) A person appointed under this section must execute a bond in the amount of \$5,000, payable to the county, conditioned that the individual will faithfully perform the duties of county purchasing agent.

(d) The county purchasing agent shall purchase all supplies, materials, and equipment required or used, and contract for all repairs to property used, by the county or a subdivision, officer, or employee of the county, except

purchases and contracts required by law to be made on competitive bid. A person other than the county purchasing agent may not make the purchase of the supplies, materials, or equipment or make the contract for repairs.

(e) The county purchasing agent shall supervise all purchases made on competitive bid and shall see that all purchased supplies, materials, and equipment are delivered to the proper county officer or department in accordance with the purchase contract.

(f) A purchase made by the county purchasing agent shall be paid for by an electronic transfer, check, or warrant drawn by the county auditor on funds in the county treasury in the manner provided by law. The county auditor may not draw and the county treasurer may not honor an electronic transfer, check, or warrant for a purchase unless the purchase is made by the county purchasing agent

or on competitive bid as provided by law.

(g) The county purchasing agent may cooperate with the purchasing agent of a municipality in the county to purchase any item in volume as may be necessary. The county treasurer shall honor an electronic transfer, check, or warrant drawn by the county auditor to reimburse the municipality's purchasing agent making the purchase for the county.

(h) The county purchasing agent is not required to make purchases for a municipal-county hospital or other joint undertaking of the municipality and county.

(i) On July 1 of each year, the county purchasing agent shall file with the county auditor and each of the members of the board that appoints the county purchasing agent an inventory of all the property on hand and belonging to the county and each subdivision, officer, and employee of the county. The county auditor shall

carefully examine the inventory and make an accounting for all property purchased or previously inventoried and not appearing in the inventory.

(j) To prevent unnecessary purchases, the county purchasing agent, with the approval of the commissioners court, shall transfer county supplies, materials, and equipment from a subdivision, department, officer, or employee of the county that are not needed or used to another subdivision, department, officer, or employee requiring the supplies or materials or the use of the equipment. The county purchasing agent shall furnish to the county auditor a list of transferred supplies, materials, and equipment.

(k) The board that appoints the county purchasing agent shall set the salary of the agent in an amount not less than \$5,000 a year, payable in equal monthly installments or by any other distribution at the option of the

county. The salary shall be paid by an electronic transfer, check, or warrant drawn on funds in the county treasury.

(l) The county purchasing agent may have assistants to aid in the performance of the agent's duties. A person who is authorized by the county purchasing agent to use a county purchasing card while making a county purchase is considered an assistant of the county purchasing agent to the extent the person complies with the rules and procedures prescribed for the use of county purchasing cards as adopted by the county purchasing agent under Subsection (o). The county purchasing agent and assistants may have any help, equipment, supplies, and traveling expenses that are approved and considered advisable by the board that appointed the agent.

(m) A person, including an officer, agent, or employee of a county or of a subdivision or department of a county, commits an offense if the

person violates this section. An offense under this subsection is a misdemeanor punishable by a fine of not less than \$10 or more than \$100. Each act in violation of this section is a separate offense.

(n) This section applies to all purchases of supplies, materials, and equipment for the use of the county and its officers, including purchases made by officers paid out of fees of office or otherwise, regardless of whether the purchase contract is made by the commissioners court or any other officer authorized to bind the county by contract. An officer making a purchase out of fees of office in violation of this section may not deduct the amount of the purchase from the amount of any fees of office due the county.

(o) The county purchasing agent shall adopt the rules and procedures necessary to implement the agent's duties under this section subject to

approval by the commissioners
court. Notwithstanding Subsection (f) or other
law, rules and procedures adopted under this
subsection may include rules and procedures for
persons to use county purchasing cards to pay for
county purchases under the direction and
supervision of the county purchasing
agent. Procedures for use of purchasing cards
may not avoid the competitive bidding
requirements of this chapter or other
requirements of county financial law.

(p) During each two-year term of office, a
county purchasing agent shall complete not less
than 25 hours in courses relating to the duties
of the county purchasing agent. The courses must
be:

(1) accredited by a nationally
recognized college or university;

(2) recognized by a national
purchasing association, such as the National

Association of Purchasing Management; or

(3) courses offered by state agencies,
or by state professional associations, related to
purchasing.

(q) An electronic transfer under this
chapter must provide the same level of internal
controls and statutory authorizations as required
for a check or warrant.

Acts 1987, 70th Leg., ch. 149, Sec. 1, eff. Sept.
1, 1987. Amended by Acts 1989, 71st Leg., ch. 1,
Sec. 87(q), eff. Aug. 28, 1989; Acts 1989, 71st
Leg., ch. 561, Sec. 1, 2, eff. Aug. 28, 1989;
Acts 1989, 71st Leg., ch. 1250, Sec. 5, 6, eff.
Sept. 1, 1989; Acts 1991, 72nd Leg., ch. 16,
Sec. 13.02(a), (d), eff. Aug. 26, 1991; Acts
1991, 72nd Leg., ch. 874, Sec. 4, eff. June 16,
1991; Acts 1993, 73rd Leg., ch. 367, Sec. 1,
eff. Aug. 30, 1993; Acts 1999, 76th Leg., ch.
505, Sec. 1, eff. Sept. 1, 1999; Acts 2001, 77th
Leg., ch. 57, Sec. 1, eff. Sept. 1, 2001; Acts

2001, 77th Leg., ch. 321, Sec. 1, eff. Sept. 1, 2001.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 285 (H.B. 1694), Sec. 1, eff. September 1, 2011.

Sec. 262.0115. PURCHASING AGENTS IN COUNTIES WITH POPULATION OF MORE THAN 100,000.

(a) In a county with a population of more than 100,000, the commissioners court may employ a person to act as county purchasing agent. However, this section does not apply to a county that has appointed a purchasing agent under Section 262.011 and that has not abolished the position as authorized by law.

(b) A purchasing agent employed under this section serves at the pleasure of the commissioners court.

(c) The commissioners court may employ other persons necessary to assist the purchasing

agent in performing the agent's functions.

(d) Under the supervision of the commissioners court, the purchasing agent shall carry out the functions prescribed by law for a purchasing agent under Section 262.011 and for any administrative function of the county auditor in regard to county purchases and contracts and shall administer the procedures prescribed by law for notice and public bidding for county purchases and contracts.

(e) A county that has established the position of county purchasing agent under this section may abolish the position at any time. On the abolition of the position, the county auditor shall assume the functions previously performed by the purchasing agent regarding the notice for and opening of competitive bids or proposals under this chapter and Chapter 271.

Added by Acts 1989, 71st Leg., ch. 1, Sec. 11(g), eff. Aug. 28, 1989. Amended by Acts 1995, 74th

Leg., ch. 63, Sec. 1, eff. May 9, 1995; Acts
1999, 76th Leg., ch. 369, Sec. 1, eff. May 29,
1999.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 285 (H.B.
1694), Sec. 2, eff. September 1, 2011.

Sec. 262.012. COUNTY AUDITORS AS PURCHASING
AGENTS IN CERTAIN COUNTIES. (a) The
commissioners court of a county that employs a
county auditor jointly with one or more counties
under Section 84.008 may require the auditor to
act as the purchasing agent for the county, in
addition to performing the regular duties of the
auditor as required by law.

(b) In a county with a population of 41,680
to 42,100, the county auditor shall act as the
purchasing agent for the county in addition to
performing the regular duties of the auditor as
required by law.

(c) This section applies only to a county in which a county purchasing agent has not been appointed under Section 262.011.

Acts 1987, 70th Leg., ch. 149, Sec. 1, eff. Sept. 1, 1987. Amended by Acts 1989, 71st Leg., ch. 561, Sec. 3, eff. Aug. 28, 1989; Acts 1989, 71st Leg., ch. 1250, Sec. 7, eff. Sept. 1, 1989; Acts 1991, 72nd Leg., ch. 204, Sec. 1, eff. Sept. 1, 1991.

SUBCHAPTER C. COMPETITIVE BIDDING IN GENERAL



Sec. 262.021. SHORT TITLE. This subchapter~~Western Australia~~

~~Criminal Injuries Compensation Act 2003~~

~~Compare between:~~

~~[07 Sep 2007, 01-a0-01] and [12 Mar 2008, 01-b0-02]~~

~~Western Australia~~

~~Criminal Injuries Compensation Act 2003~~

~~An Act to provide for the payment of compensation to victims of offences in some circumstances, and for related matters.~~

~~Part 1~~ Preliminary

~~1.~~ Short title

~~This Act~~ may be cited as the
County Purchasing Act.

Acts 1987, 70th Leg., ch. 149, Sec. 1, eff. Sept.
1, 1987.

Sec. 262.022. DEFINITIONS. In this
subchapter:

(1) "Bond funds" means money in the
county treasury received from the sale of bonds,
and proceeds of bonds that have been voted but
that have not been issued and delivered.

(2) "Component purchases" means
purchases of the component parts of an item that
in normal purchasing practices would be purchased
in one purchase.

(3) "Current funds" means funds in the
county treasury that are available in the current

tax year, revenue that may be anticipated with reasonable certainty to come into the county treasury during the current tax year, and emergency funds.

(4) "High technology item" means a service, equipment, or good of a highly technical nature, including:

(A) data processing equipment and software and firmware used in conjunction with data processing equipment;

(B) telecommunications, radio, and microwave systems;

(C) electronic distributed control systems, including building energy management systems; and

(D) technical services related to those items.

(5) "Item" means any service,

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equipment, good, or other tangible or intangible personal property, including insurance and high technology items. The term does not include professional services as defined by Section 2254.002, Government Code.

(5-a) "Lowest and best" means a bid or offer providing the best value considering associated direct and indirect costs, including transport, maintenance, reliability, life cycle, warranties, and customer service after a sale.

(5-b) "Normal purchasing practice" means:

(A) an accepted custom, practice, or standard for government procurement in the state; or

(B) a practice recognized by a national purchasing association regarding the purchase of a particular good or service.

(6) "Purchase" means any kind of

acquisition, including by a lease or revenue contract.

(7) "Separate purchases" means purchases, made separately, of items that in normal purchasing practices would be purchased in one purchase.

(8) "Sequential purchases" means purchases, made over a period, of items that in normal purchasing practices would be purchased in one purchase.

(9) "Time warrant" means any warrant issued by a county that is not payable out of current funds.

Acts 1987, 70th Leg., ch. 149, Sec. 1, eff. Sept. 1, 1987. Amended by Acts 1989, 71st Leg., ch. 1, Sec. 59(b), eff. Aug. 28, 1989; Acts 1989, 71st. Leg., ch. 1250, Sec. 8(a), eff. Sept. 1, 1989.

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Acts 2011, 82nd Leg., R.S., Ch. 285 (H.B. 1694), Sec. 3, eff. September 1, 2011.

Sec. 262.0225. ADDITIONAL COMPETITIVE PROCEDURES. (a) In the procedure for competitive bidding under this subchapter, the commissioners court of the county shall provide all bidders with the opportunity to bid on the same items on equal terms and have bids judged according to the same standards as set forth in the specifications.

(b) A county shall receive bids or proposals under this subchapter in a fair and confidential manner.

(c) A county may receive bids or proposals under this subchapter in hard-copy format or through electronic transmission. Except as provided by Subsection (c-1), a county shall accept any bids or proposals submitted in hard-

copy format.

(c-1) The commissioners court of a county may by order require submission of bids or proposals under this subchapter through electronic transmission if the county makes available all technology necessary to submit a bid or proposal through electronic transmission to any person who submits a hard-copy bid or proposal in person.

(d) A county that complies in good faith with the competitive bidding requirements of this chapter and receives no responsive bids for an item may procure the item under Section 262.0245. Added by Acts 2001, 77th Leg., ch. 1063, Sec. 1, eff. Sept. 1, 2001.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 285 (H.B. 1694), Sec. 4, eff. September 1, 2011.

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Acts 2021, 87th Leg., R.S., Ch. 11 (H.B. 362), Sec. 1, eff. May 15, 2021.

The following section was amended by the 89th Legislature. Pending publication of the current statutes, see S.B. 1173, 89th Legislature, Regular Session, for amendments affecting the following section.

Sec. 262.023. COMPETITIVE REQUIREMENTS FOR CERTAIN PURCHASES. (a) Before a county may purchase one or more items under a contract that will require an expenditure exceeding \$50,000, the commissioners court of the county must:

(1) comply with the competitive bidding or competitive proposal procedures prescribed by this subchapter;

(2) use the reverse auction procedure, as defined by Section 2155.062(d), Government Code, for purchasing; or

(3) comply with a method described by Chapter 2269, Government Code.

(b) The requirements established by Subsection (a) apply to contracts for which payment will be made from current funds or bond funds or through anticipation notes authorized by Chapter 1431, Government Code, or time warrants. Contracts for which payments will be made through certificates of obligation are governed by The Certificate of Obligation Act of 1971 (Subchapter C, Chapter 271).

(b-1) A county that complies with a method described by Chapter 2269, Government Code, as provided by Subsection (a)(3), to enter into a contract for which payment will be made through anticipation notes authorized by Chapter 1431, Government Code, may not issue anticipation notes for the payment of that contract in an amount

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that exceeds the lesser of:

(1) 20 percent of the county's budget
for the fiscal year in which the county enters
into the contract; or

(2) \$10 million.

(c) In applying the requirements
established by Subsection (a), all separate,
sequential, or component purchases of items
ordered or purchased, with the intent of avoiding
the requirements of this subchapter, from the
same supplier by the same county officer,
department, or institution are treated as if they
are part of a single purchase and of a single
contract. In applying this provision to the
purchase of office supplies, separate purchases
of supplies by an individual department are not
considered to be part of a single purchase and
single contract by the county if a specific
intent to avoid the requirements of this

subchapter is not present.

Acts 1987, 70th Leg., ch. 149, Sec. 1, eff. Sept. 1, 1987. Amended by Acts 1989, 71st Leg., ch. 1, Sec. 57(a), eff. Aug. 28, 1989; Acts 1989, 71st Leg., ch. 1250, Sec. 9, eff. Sept. 1, 1989; Acts 1991, 72nd Leg., ch. 16, Sec. 13.02(b), eff. Aug. 26, 1991; Acts 1993, 73rd Leg., ch. 757, Sec. 13, 38, eff. Sept. 1, 1993; Acts 1997, 75th Leg., ch. 442, Sec. 1, eff. Sept. 1, 1997; Acts 1999, 76th Leg., ch. 505, Sec. 2, eff. Sept. 1, 1999; Acts 2001, 77th Leg., ch. 436, Sec. 4, eff. May 28, 2001; Acts 2001, 77th Leg., ch. 1063, Sec. 2, eff. Sept. 1, 2001; Acts 2001, 77th Leg., ch. 1409, Sec. 4, eff. Sept. 1, 2001; Acts ~~Criminal Injuries Compensation Act~~ 2003, 78th Leg., ch. 1276, Sec. 12.004, eff. Sept. 1, 2003⁺.

Amended by:

Criminal Injuries Compensation Act 2003

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Acts 2007, 80th Leg., R.S., Ch. 689 (H.B. 1764), Sec. 1, eff. September 1, 2007.

Acts 2009, 81st Leg., R.S., Ch. 1266 (H.B. 987), Sec. 4, eff. June 19, 2009.

Acts 2011, 82nd Leg., R.S., Ch. 1129 (H.B. 628), Sec. 4.04, eff. September 1, 2011.

Acts 2013, 83rd Leg., R.S., Ch. 161 (S.B. 1093), Sec. 22.002(23), eff. September 1, 2013.

Sec. 262.0235. PROCEDURES ADOPTED BY COUNTY PURCHASING AGENTS FOR ELECTRONIC BIDS OR PROPOSALS. The county purchasing agent, before receiving electronic bids or proposals, shall adopt rules in conformance with Section 262.011(o) to ensure the identification, security, and confidentiality of electronic bids or proposals.

Added by Acts 2001, 77th Leg., ch. 1063, Sec. 3, eff. Sept. 1, 2001.

Sec. 262.024. DISCRETIONARY EXEMPTIONS.

(a) A contract for the purchase of any of the following items is exempt from the requirement established by Section 262.023 if the commissioners court by order grants the exemption:

(1) an item that must be purchased in a case of public calamity if it is necessary to make the purchase promptly to relieve the necessity of the citizens or to preserve the property of the county;

(2) an item necessary to preserve or protect the public health or safety of the residents of the county;

(3) an item necessary because of unforeseen damage to public property;

(4) a personal or professional

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service;

(5) any individual work performed and paid for by the day, as the work progresses, provided that no individual is compensated under this subsection for more than 20 working days in any three month period;

(6) any land or right-of-way;

(7) an item that can be obtained from only one source, including:

(A) items for which competition is precluded because of the existence of patents, copyrights, secret processes, or monopolies;

(B) films, manuscripts, or books;

(C) electric power, gas, water, and other utility services; and

(D) captive replacement parts or components for equipment;

(8) an item of food;

(9) personal property sold:

(A) at an auction by a state licensed auctioneer;

(B) at a going out of business sale held in compliance with Subchapter F, Chapter 17, Business & Commerce Code; or

(C) by a political subdivision of this state, a state agency of this state, or an entity of the federal government;

(10) any work performed under a contract for community and economic development made by a county under Section 381.004; or

(11) vehicle and equipment repairs.

(b) The renewal or extension of a lease or of an equipment maintenance agreement is exempt from the requirement established by Section 262.023 if the commissioners court by order grants the exemption and if:

(1) the lease or agreement has gone

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through the competitive bidding procedure within the preceding year;

(2) the renewal or extension does not exceed one year; and

(3) the renewal or extension is the first renewal or extension of the lease or agreement.

(c) If an item exempted under Subsection (a) (7) is purchased, the commissioners court, after accepting a signed statement from the county official who makes purchases for the county as to the existence of only one source, must enter in its minutes a statement to that effect.

(d) The exemption granted under Subsection (a) (8) of this section shall apply only to the sealed competitive bidding requirements on food purchases. Counties shall solicit at least three bids for purchases of food items by telephone or

written quotation at intervals specified by the
commissioners court. Counties shall award food
purchase contracts to the responsible bidder who
submits the lowest and best bid or shall reject
all bids and repeat the bidding process, as
provided by this subsection. The purchasing
officer taking telephone or written bids under
this subsection shall maintain, on a form
approved by the commissioners court, a record of
all bids solicited and the vendors contacted.
This record shall be kept in the purchasing
office for a period of at least one year or until
audited by the county auditor.

Acts 1987, 70th Leg., ch. 149, Sec. 1, eff. Sept.
1, 1987. Amended by Acts 1989, 71st Leg., ch. 1,
Sec. 59(c), eff. Aug. 28, 1989; Acts 1989, 71st
Leg., ch. 962, Sec. 1, eff. Sept. 1, 1989; Acts
1989, 71st Leg., ch. 1001, Sec. 2, eff. Aug. 28,

Criminal Injuries Compensation Act 2003

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1989; Acts 1989, 71st Leg., ch. 1060, Sec. 1, eff. Aug. 28, 1989; Acts 1991, 72nd Leg., ch. 16, Sec. 13.03, eff. Aug. 26, 1991; Acts 1997, 75th Leg., ch. 442, Sec. 2, eff. Sept. 1, 1997; Acts 2001, 77th Leg., ch. 1065, Sec. 1, eff. June 15, 2001.

Amended by:

Acts 2007, 80th Leg., R.S., Ch. 1272 (H.B. 3517), Sec. 3, eff. September 1, 2007.

Sec. 262.0241. MANDATORY EXEMPTIONS:
CERTAIN RECREATIONAL SERVICES. (a) This section
applies only to a county that:

(1) has a population of 20,000 or
less; and

(2) owns not more than one golf course
open for public use.

(b) The competitive bidding and competitive
proposal procedures prescribed by this subchapter

do not apply to the purchase of:

(1) management services for:

(A) a county-owned golf course;

or

(B) a retail facility owned by

the county and located on the premises of the
golf course; and

(2) landscape maintenance services for
a county-owned golf course.

Added by Acts 2001, 77th Leg., ch. 1065, Sec. 2,
eff. June 15, 2001.

Sec. 262.0245. COMPETITIVE PROCUREMENT
PROCEDURES ADOPTED BY COUNTY PURCHASING AGENTS OR
COMMISSIONERS COURT. A county purchasing agent
or, in a county without a purchasing agent, the
commissioners court shall adopt procedures that
provide for competitive procurement, to the

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extent practicable under the circumstances, for the county purchase of an item that is not subject to competitive procurement or for which the county receives no responsive bid.

Added by Acts 1991, 72nd Leg., ch. 16, Sec. 13.02(c), eff. Aug. 26, 1991. Renumbered from Sec. 262.0241 by Acts 2001, 77th Leg., ch. 1065, Sec. 2, eff; June 15, 2001.

Amended by:

Acts 2009, 81st Leg., R.S., Ch. 1266 (H.B. 987), Sec. 5, eff. June 19, 2009.

Acts 2011, 82nd Leg., R.S., Ch. 285 (H.B. 1694), Sec. 5, eff. September 1, 2011.

Sec. 262.025. COMPETITIVE BIDDING NOTICE.

(a) A notice of a proposed purchase must be published at least once a week for two consecutive weeks in a newspaper of general circulation in the county, with the first day of

publication occurring at least 14 days before the date of the bid opening. If there is no newspaper of general circulation in the county, the notice must be posted in a prominent place in the courthouse for 14 days before the date of the bid opening. Notice published in a newspaper must include:

(1) a general statement of the proposed purchase;

(2) the name and telephone number of the purchasing agent; and

(3) the county website address, if any.

(a-1) Subsection (a) does not require more than two notices in one newspaper or limit the county from providing additional notice for longer periods or in more locations.

(b) The notice must include:

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(1) the specifications describing the item to be purchased or a statement of where the specifications may be obtained;

(2) the time and place for receiving and opening bids and the name and position of the county official or employee to whom the bids are to be sent;

(3) whether the bidder should use lump-sum or unit pricing;

(4) the method of payment by the county; and

(5) the type of bond required by the bidder.

(c) If any part of the payment for a proposed purchase will be made through time warrants, the notice also must include a statement of the maximum amount of time warrant indebtedness, the rate of interest on the time warrants, and the maximum maturity date of the

time warrants.

(d) In a county with a population of 3.3 million or more, the county and any district or authority created under Article XVI, Section 59, of the Texas Constitution of which the governing body is the commissioners court may require that a minimum of 25 percent of the work be performed by the bidder and, notwithstanding any other law to the contrary, may establish financial criteria for the surety companies that provide payment and performance bonds.

Acts 1987, 70th Leg., ch. 149, Sec. 1, eff. Sept. 1, 1987. Amended by Acts 1989, 71st Leg., ch. 1019, Sec. 1, eff. Aug. 28, 1989; Acts 2001, 77th Leg., ch. 669, Sec. 78, eff. Sept. 1, 2001.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 285 (H.B. 1694), Sec. 6, eff. September 1, 2011.

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Sec. 262.0255. ADDITIONAL NOTICE AND BOND PROVISIONS RELATING TO PURCHASE OF CERTAIN EQUIPMENT. (a) A notice of a proposed purchase of earth-moving, material-handling, road maintenance, or construction equipment under Section 262.025 may include a request for information about the costs of the repair, maintenance, or repurchase of the equipment.

(b) The commissioners court may require the bidder to furnish, to the county in a contract for the purchase of the equipment, a bond to cover the repurchase costs of the equipment.

(c) A commissioners court purchasing personal property under Section 271.083 of this code or Section 791.025, Government Code, may negotiate with a vendor awarded a cooperative contract under those sections an agreement for the vendor to purchase or accept as trade used

equipment owned by the county.

Added by Acts 1991, 72nd Leg., ch. 416, Sec. 1,
eff. Sept. 1, 1991.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 285 (H.B.
1694), Sec. 7, eff. September 1, 2011.

Sec. 262.0256. PRE-BID CONFERENCE FOR
CERTAIN COUNTIES OR A DISTRICT GOVERNED BY THOSE
COUNTIES. (a) The commissioners court of the
county or the governing body of a district or
authority created under Section 59, Article XVI,
Texas Constitution, if the governing body is the
commissioners court of the county in which the
district is located, may require a principal,
officer, or employee of each prospective bidder
to attend a mandatory pre-bid conference
conducted for the purpose of discussing contract

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requirements and answering questions of prospective bidders.

(b) After a conference is conducted under Subsection (a), any additional required notice for the proposed purchase may be sent by certified mail, return receipt requested, only to prospective bidders who attended the conference. Notice under this subsection is not subject to the requirements of Section 262.025. Reenacted and amended by Acts 2011, 82nd Leg., R.S., Ch. 285 (H.B. 1694), Sec. 8, eff. September 1, 2011.

Sec. 262.026. OPENING OF BIDS. (a) The county official who makes purchases for the county shall open the bids on the date specified in the notice. The date specified in the notice may be extended if the commissioners court determines that the extension is in the best

interest of the county. All bids, including those received before an extension is made, must be opened at the same time. The commissioners court may adopt an order that delegates the authority to make extensions under this subsection to the county official who makes purchases for the county.

(b) Opened bids shall be kept on file and available for inspection by anyone desiring to see them until the first anniversary of the date of opening. Opened bids are subject to disclosure under Chapter 552, Government Code. Acts 1987, 70th Leg., ch. 149, Sec. 1, eff. Sept. 1, 1987. Amended by Acts 1999, 76th Leg., ch. 505, Sec. 3, eff. Sept. 1, 1999.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 285 (H.B. 1694), Sec. 9, eff. September 1, 2011.

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Sec. 262.027. AWARDING OF CONTRACT. (a)

The officer in charge of opening the bids shall present them to the commissioners court in session. Except as provided by Subsection (e), the court shall:

(1) award the contract to the responsible bidder who submits the lowest and best bid; or

(2) reject all bids and publish a new notice.

(b) If two responsible bidders submit the lowest and best bid, the commissioners court shall decide between the two by drawing lots in a manner prescribed by the county judge.

(c) A contract may not be awarded to a bidder who is not the lowest dollar bidder meeting specifications unless, before the award, each lower bidder is given:

(1) notice of the proposed award; and
(2) an opportunity to appear before
the commissioners court and present previously
unconsidered evidence concerning the lower bid as
best, which may include evidence of the bidder's
responsibility.

(d) In determining the lowest and best bid
for a contract for the purchase of earth-moving,
material-handling, road maintenance, or
construction equipment, the commissioners court
may consider the information submitted under
Section 262.0255.

(e) In determining the lowest and best bid
for a contract for the purchase of road
construction material, the commissioners court
may consider the pickup and delivery locations of
the bidders and the cost to the county of
delivering or hauling the material to be

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purchased. The commissioners court may award contracts for the purchase of road construction material to more than one bidder if each of the selected bidders submits the lowest and best bid for a particular location or type of material.

(f) Notwithstanding any other requirement of this section, the commissioners court may condition acceptance of a bid on compliance with a requirement for attendance at a mandatory pre-bid conference under Section 262.0256.

(g) If after the award the successful bidder fails to qualify for required bonds, or is otherwise unable to meet the requirements of the award, the commissioners court may award the contract to the next bidder in order of ranking as lowest and best bid.

(h) Before a contract is awarded, a bidder must give written notice to the officer authorized to open bids that the bidder intends

to protest an award of the contract under Subsection (c). This subsection does not limit the ability of a bidder to speak at a public meeting of the commissioners court under rules established by the court.

Acts 1987, 70th Leg., ch. 149, Sec. 1, eff. Sept. 1, 1987. Amended by Acts 1991, 72nd Leg., ch. 416, Sec. 2, eff. Sept. 1, 1991; Acts 1993, 73rd Leg., ch. 127, Sec. 1, eff. May 11, 1993; Acts 2001, 77th Leg., ch. 255, Sec. 2, eff. May 22, 2001.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 285 (H.B. 1694), Sec. 10, eff. September 1, 2011.

Sec. 262.0271. CONSIDERATION OF HEALTH INSURANCE PROVIDED BY BIDDER. (a) Repealed by Acts 2011, 82nd Leg., R.S., Ch. 285, Sec. 24,

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eff. September 1, 2011.

(b) In purchasing items under this chapter through a competitive bidding process, if a county receives one or more bids from a bidder who provides reasonable health insurance coverage to its employees and requires a subcontractor the bidder intends to use to provide reasonable health insurance coverage to the subcontractor's employees and whose bid is within five percent of the lowest and best bid price received by the county from a bidder who does not provide or require reasonable health insurance coverage, the commissioners court of the county may give preference to the bidder who provides and requires reasonable health insurance coverage.

(c) This section does not prohibit a county from rejecting all bids.

Added by Acts 2005, 79th Leg., Ch. 1299 (H.B. 2695), Sec. 1, eff. September 1, 2005.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 285 (H.B. 1694), Sec. 11, eff. September 1, 2011.

Acts 2011, 82nd Leg., R.S., Ch. 285 (H.B. 1694), Sec. 24, eff. September 1, 2011.

Sec. 262.0275. SAFETY RECORD OF BIDDER
CONSIDERED. In determining who is a responsible
bidder, the commissioners court may take into
account the safety record of the bidder, of the
firm, corporation, partnership, or institution
represented by the bidder, or of anyone acting
for such a firm, corporation, partnership, or
institution if:

(1) the commissioners court has
adopted a written definition and criteria for
accurately determining the safety record of a
bidder;

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(2) the governing body has given notice to prospective bidders in the bid specifications that the safety record of a bidder may be considered in determining the responsibility of the bidder; and

(3) the determinations are not arbitrary and capricious.

Added by Acts 1989, 71st Leg., ch. 1, Sec. 58(c), eff. Aug. 28, 1989.

Sec. 262.0276. CONTRACT WITH PERSON INDEBTED TO COUNTY. (a) By an order adopted and entered in the minutes of the commissioners court and after notice is published in a newspaper of general circulation in the county, the commissioners court may adopt rules permitting the county to refuse to enter into a contract or other transaction with a person who owes a debt to the county.

(b) It is not a violation of this subchapter for a county, under rules adopted under Subsection (a), to refuse to award a contract to or enter into a transaction with an apparent low bidder or successful proposer that is indebted to the county.

(c) In this section, "person" includes an individual, sole proprietorship, corporation, nonprofit corporation, partnership, joint venture, limited liability company, and any other entity that proposes or otherwise seeks to enter into a contract or other transaction with the county requiring approval by the commissioners court.

(d) In this section, "debt" includes delinquent taxes, fines, fees, and delinquencies arising from written agreements with the county.
Added by Acts 2003, 78th Leg., ch. 156, Sec. 2,

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eff. Sept. 1, 2003.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 285 (H.B. 1694), Sec. 12, eff. September 1, 2011.

Sec. 262.028. LUMP-SUM OR UNIT PRICE METHOD. A purchase may be proposed on a lump-sum or unit price basis. If the county chooses to use unit pricing in its notice, the information furnished bidders must specify the approximate quantities estimated on the best available information, but the compensation paid the bidder must be based on the actual quantities purchased. Acts 1987, 70th Leg., ch. 149, Sec. 1, eff. Sept. 1, 1987.

Sec. 262.029. TIME WARRANT ELECTION. If before the date tentatively set for the authorization of the issuance of time warrants

applying to a contract covered by this subchapter
or if before that authorization a petition signed
by at least five percent of the registered voters
of the county is filed with the county clerk
protesting the issuance of the time warrants, the
county may not issue the time warrants unless the
issuance is approved at an election ordered and
conducted in the manner provided for county bond
elections under Chapter 1251, Government Code.
Acts 1987, 70th Leg., ch. 149, Sec. 1, eff. Sept.
1, 1987. Amended by Acts 2001, 77th Leg., ch.
1420, Sec. 8.291, eff. Sept. 1, 2001.

Sec. 262.0295. ALTERNATIVE MULTISTEP
COMPETITIVE PROPOSAL PROCEDURE. (a) (1) If the
county official who makes purchases for the
county determines that it is impractical to
prepare detailed specifications for an item to

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support the award of a purchase contract, the official shall notify the commissioners court of such determination.

(2) Upon a finding by the commissioners court that it is impractical to prepare detailed specifications for an item to support the award of a purchase contract, after a notification of such determination by the county official who makes purchases for the county, the county official who makes purchases for the county may use the multistep competitive proposal procedure provided by this section.

(3) Repealed by Acts 2011, 82nd Leg., R.S., Ch. 285, Sec. 24, eff. September 1, 2011.

(b) Quotations must be solicited through a request for proposals. Public notice for the request for proposals must be made in the same manner as provided in the competitive bidding procedure, except that the notice may include a

general description of the item to be purchased,
instead of the specifications describing the item
or a statement of where the specifications may be
obtained, and may request the submission of
unpriced proposals.

(c) On the date specified in the notice,
the county official shall open the proposals and,
within seven days after that date, solicit by
mailed request priced bids from the persons who
submitted proposals and who qualified under the
criteria stated in the first solicitation.

(d) Within 30 days after the date the
unpriced proposals are opened under Subsection
(c), the county official shall present the priced
bids to the commissioners court. The award of
the contract shall be made to the responsible
offeror whose bid is determined to be the lowest
and best evaluated offer resulting from

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negotiation. All proposals and bids that have been submitted shall be available and open for public inspection after the contract is awarded.

(e) As provided in the request for proposals and under rules adopted by the commissioners court, discussion may be conducted with responsible offerors who submit priced bids determined to be reasonably susceptible of being selected for award. Offerors must be accorded fair and equal treatment with respect to any opportunity for discussion and revision of proposals, and revisions may be permitted after submission and before award for the purpose of obtaining best and final offers.

Added by Acts 1989, 71st Leg., ch. 1250, Sec. 10, eff. Sept. 1, 1989.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 285 (H.B. 1694), Sec. 13, eff. September 1, 2011.

Acts 2011, 82nd Leg., R.S., Ch. 285 (H.B. 1694), Sec. 24, eff. September 1, 2011.

Sec. 262.030. ALTERNATIVE COMPETITIVE PROPOSAL PROCEDURE FOR CERTAIN GOODS AND SERVICES. (a) Except for Subsection (d) of this section, the competitive proposal procedure provided by this section may be used for the purchase of insurance, high technology items, and the following special services:

- (1) landscape maintenance;
- (2) travel management; or
- (3) recycling.

(b) Quotations must be solicited through a request for proposals. Public notice for the request for proposals must be made in the same manner as provided in the competitive bidding procedure. The request for proposals must

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specify the relative importance of price and other evaluation factors. The award of the contract shall be made to the responsible offeror whose proposal is determined to be the lowest and best evaluated offer resulting from negotiation, taking into consideration the relative importance of price and other evaluation factors set forth in the request for proposals.

(c) If provided in the request for proposals, proposals shall be opened so as to avoid disclosure of contents to competing offerors and kept secret during the process of negotiation. All proposals that have been submitted shall be available and open for public inspection after the contract is awarded, except for trade secrets and confidential information contained in the proposals and identified as such.

(d) A county in which a purchasing agent

has been appointed under Section 262.011 or
employed under Section 262.0115 may use the
competitive proposal purchasing method authorized
by this section for the purchase of insurance or
high technology items. In addition, the method
may be used to purchase other items when the
county official who makes purchases for the
county determines, with the consent of the
commissioners court, that it is in the best
interest of the county to make a request for
proposals.

(e) As provided in the request for
proposals and under rules adopted by the
commissioners court, discussions may be conducted
with responsible offerors who submit proposals
determined to be reasonably susceptible of being
selected for award. Offerors must be accorded
fair and equal treatment with respect to any

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opportunity for discussion and revision of proposals, and revisions may be permitted after submission and before award for the purpose of obtaining best and final offers.

Acts 1987, 70th Leg., ch. 149, Sec. 1, eff. Sept. 1, 1987. Amended by Acts 1989, 71st Leg., ch. 1, Sec. 59(d), eff. Aug. 28, 1989; Acts 1995, 74th Leg., ch. 464, Sec. 1, eff. Aug. 28, 1995; Acts 1995, 74th Leg., ch. 746, Sec. 3, eff. Aug. 28, 1995; Acts 1999, 76th Leg., ch. 62, Sec. 19.01(85), eff. Sept. 1, 1999.

Amended by:

Acts 2005, 79th Leg., Ch. 640 (H.B. 2694), Sec. 1, eff. September 1, 2005.

Acts 2007, 80th Leg., R.S., Ch. 1272 (H.B. 3517), Sec. 4, eff. September 1, 2007.

Acts 2007, 80th Leg., R.S., Ch. 1272 (H.B. 3517), Sec. 5, eff. September 1, 2007.

Acts 2011, 82nd Leg., R.S., Ch. 285 (H.B.

1694), Sec. 14, eff. September 1, 2011.

Sec. 262.0305. MODIFICATION AFTER AWARD.

(a) After award of a contract but before the contract is made, the county official who makes purchases for the county may negotiate a modification of the contract if the modification is in the best interests of the county and does not substantially change the scope of the contract or cause the contract amount to exceed the next lowest bid.

(b) For the modified contract to be effective, the commissioners court must approve the contract.

Added by Acts 1989, 71st Leg., ch. 1250, Sec. 11, eff. Sept. 1, 1989.

Sec. 262.031. CHANGES IN PLANS AND

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SPECIFICATIONS. (a) If it becomes necessary to make changes in plans, specifications, or proposals after a contract is made or if it becomes necessary to increase or decrease the quantity of items purchased, the commissioners court may make the changes. However, the total contract price may not be increased unless the cost of the change can be paid from available funds.

(b) If a change order involves an increase or decrease in cost of \$50,000 or less, the commissioners court may grant general authority to an employee to approve the change orders. However, the original contract price may not be increased by more than 25 percent unless the change order is necessary to comply with a federal or state statute, rule, regulation, or judicial decision enacted, adopted, or rendered after the contract was made. The original

contract price may not be decreased by 18 percent or more without the consent of the contractor.
Acts 1987, 70th Leg., ch. 149, Sec. 1, eff. Sept. 1, 1987. Amended by Acts 1993, 73rd Leg., ch. 104, Sec. 1, eff. May 7, 1993; Acts 1993, 73rd Leg., ch. 891, Sec. 1, eff. June 19, 1993; Acts 1995, 74th Leg., ch. 746, Sec. 4, eff. Aug. 28, 1995.

Sec. 262.032. BID OR PERFORMANCE BOND; PAYMENT UNDER CONTRACT. (a) If the contract is for the construction of public works or is under a contract exceeding \$100,000, the bid specifications or request for proposals may require the bidder to furnish a good and sufficient bid bond in the amount of five percent of the total contract price. A bid bond must be executed with a surety company authorized to do

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business in this state.

(b) Within 30 days after the date of the signing of a contract or issuance of a purchase order following the acceptance of a bid or proposal and prior to commencement of the actual work, the bidder or proposal offeror shall furnish a performance bond to the county, if required by the county, for the full amount of the contract if that contract exceeds \$50,000. This subsection does not apply to a performance bond required to be furnished by Chapter 2253, Government Code.

(c) If the contract is for \$50,000 or less, the county may provide in the bid notice or request for proposals that no money will be paid to the contractor until completion and acceptance of the work or the fulfillment of the purchase obligation to the county.

(d) A bidder or proposal offeror whose

rates are subject to regulation by a state agency
may not be required to furnish a performance bond
or a bid bond under this section.

Acts 1987, 70th Leg., ch. 149, Sec. 1, eff. Sept.
1, 1987. Amended by Acts 1989, 71st Leg., ch. 1,
Sec. 59(e), eff. Aug. 28, 1989; Acts 1991, 72nd
Leg., ch. 109, Sec. 3, eff. Aug. 26, 1991; Acts
1991, 72nd Leg., ch. 696, Sec. 1, eff. Sept. 1,
1991; Acts 1993, 73rd Leg., ch. 33, Sec. 1, eff.
Aug. 30, 1993; Acts 1995, 74th Leg., ch. 76,
Sec. 5.95(17), eff. Sept. 1, 1995.

Sec. 262.033. INJUNCTION. Any property tax
paying citizen of the county may enjoin
performance under a contract made by a county in
violation of this subchapter.

Acts 1987, 70th Leg., ch. 149, Sec. 1, eff. Sept.
1, 1987.

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Sec. 262.034. CRIMINAL PENALTIES. (a) A county officer or employee commits an offense if the officer or employee intentionally or knowingly makes or authorizes separate, sequential, or component purchases to avoid the competitive bidding requirements of Section 262.023. An offense under this subsection is a Class B misdemeanor.

(b) Repealed by Acts 2011, 82nd Leg., R.S., Ch. 285, Sec. 24, eff. September 1, 2011.

(c) A county officer or employee commits an offense if the officer or employee intentionally or knowingly violates this subchapter, other than by conduct described by Subsection (a). An offense under this subsection is a Class C misdemeanor.

Acts 1987, 70th Leg., ch. 149, Sec. 1, eff. Sept. 1, 1987. Amended by Acts 1989, 71st Leg., ch.

1250, Sec. 12, eff. Sept. 1, 1989.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 285 (H.B. 1694), Sec. 15, eff. September 1, 2011.

Acts 2011, 82nd Leg., R.S., Ch. 285 (H.B. 1694), Sec. 24, eff. September 1, 2011.

Sec. 262.036. SELECTION AND RETENTION OF INSURANCE BROKER. (a) Notwithstanding any other provision in this chapter, a county may select an appropriately licensed insurance agent as the sole broker of record to obtain proposals and coverages for insurance that provides necessary coverage and adequate limits of coverage in all areas of risk, including public official liability, property, casualty, workers' compensation, and specific and aggregate stop-loss coverage for self-funded health care.

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(b) The county may retain a broker of record selected under this section only on a fee basis paid by the county. A broker of record retained in this manner may not directly or indirectly receive any other remuneration, compensation, or other form of payment from any other source for the placement of insurance business under the broker of record contract.

(c) A broker of record retained under this section may not submit any insurance carrier proposal to the county or direct any county insurance business to an insurance carrier if the broker has a business relationship or proposed business relationship with the carrier, including an appointment, unless the broker first discloses the nature of that relationship or proposed relationship, in writing, to the county.

(d) A broker who violates this section is subject to any disciplinary remedy available

under Chapter 82, Insurance Code, or Section 4005.102, Insurance Code, including license revocation and fine.

Added by Acts 2005, 79th Leg., Ch. 353 (S.B. 1214), Sec. 1, eff. June 17, 2005.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 285 (H.B. 1694), Sec. 16, eff. September 1, 2011.

Sec. 262.037. QUALIFICATION. An officer authorized to make a purchase on behalf of a county or a county department or office may not make any purchase until providing to the county judge a signed acknowledgment that the officer has read and understands this chapter. This section does not apply in a county that has appointed a purchasing agent under Subchapter B.

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**Added by Acts 2011, 82nd Leg., R.S., Ch. 285 (H.B. 1694), Sec. 17,
eff. September 1, 2011.2. Commencement**

~~———— This Act comes into operation on a day fixed by proclamation¹.~~

3. ——— Terms used in this Act

~~———— In this Act, unless the contrary intention appears —~~

~~———— “**alleged offence**” means a crime, misdemeanour or simple
offence of which no person has been convicted;~~

~~———— “**applicant**” means a person who makes a compensation
application;~~

~~———— “**assessor**” means the Chief Assessor, or an assessor, appointed
under Schedule 1 clause 2;~~

~~———— “**CEO**” means the chief executive officer of the department of
the Public Service that principally assists the Minister in
the administration of this Act;~~

~~———— “**Chief Assessor**” means the Chief Assessor of Criminal
Injuries Compensation appointed under Schedule 1
clause 2(1);~~

~~———— “**close relative**” has the meaning given by section 4;~~

~~———— “**compensation application**” means an application for criminal
injuries compensation made under Part 2;~~

~~———— “**compensation award**” means an award of compensation made
under Part 4;~~

~~———— “**compensation reimbursement order**” means an order made
under section 52 of this Act, or section 39(1) of the
*Criminal Injuries Compensation Act 1985*²;~~

~~———— “**convicted**” has a meaning affected by section 5;~~

~~———— “**health professional**” means —~~

~~———— (a) a dentist within the meaning of the *Dental Act 1939*;~~

~~———— (b) a medical practitioner within the meaning of the
Medical Act 1894; or~~

- ~~_____ (c) a psychologist as defined in the *Psychologists Act 2005* section 3;~~
- ~~_____ “injury” means bodily harm, mental and nervous shock, or pregnancy;~~
- ~~_____ “interested person”, in relation to a compensation application or to a compensation award made on such an application, means —~~
- ~~_____ (a) the applicant;~~
- ~~_____ (b) a person who an assessor thinks may become liable under Part 6 to pay an amount to the State; or~~
- ~~_____ (c) the CEO;~~
- ~~_____ “lawyer” means a person who is admitted and entitled to practise as a barrister and solicitor of the Supreme Court;~~
- ~~_____ “loss” has the meaning given by section 6;~~
- ~~_____ “offence” means an alleged offence or a proved offence;~~
- ~~_____ “personal representative”, of a deceased person, means —~~
- ~~_____ (a) the executor or the administrator of the deceased’s estate;~~
- ~~_____ (b) in the absence of such an executor or administrator, a person who satisfies an assessor that the person is entitled to apply to be the executor or administrator of the deceased’s estate;~~
- ~~_____ “proved offence” means a crime, misdemeanour or simple offence of which a person has been convicted;~~
- ~~_____ “record” means any record of information, whether made on paper, electronically or otherwise and whether in writing or otherwise;~~
- ~~_____ “satisfied” means satisfied on the balance of probabilities;~~
- ~~_____ “victim” means a person who suffers injury, or who dies, as a consequence of the commission of an offence.~~

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~~[Section 3 amended by No. 29 of 2004 s. 4; No. 28 of 2005 s. 108.]~~

4. ~~“Close relative”, meaning of~~

- ~~(1) For the purposes of this Act, a “close relative” of a victim who dies or is injured as a consequence of the commission of an offence, is a person who, immediately before the offence was committed, was —~~
- ~~(a) a parent, grandparent or step-parent of the victim;~~
 - ~~(b) the spouse or a de facto partner of the victim; or~~
 - ~~(c) a child, grandchild or stepchild of the victim.~~
- ~~(2) The presumptions of parentage in the *Family Court Act 1997* Part 5 Division 11 Subdivision 3 operate, and section 193 of that Act operates in respect of those presumptions, for the purposes of this Act.~~

5. ~~“Convicted”, meaning of~~

- ~~(1) For the purposes of this Act a person is convicted of an offence notwithstanding that having been found guilty or convicted of the offence —~~
- ~~(a) a spent conviction order made under the *Sentencing Act 1995* section 39 applies to the conviction;~~
 - ~~(b) a conviction is not recorded under the *Young Offenders Act 1994* section 55;~~
 - ~~(c) the complaint or indictment was dismissed under the repealed section 669(1)(a) of *The Criminal Code*;~~
 - ~~(d) the repealed section 20 of the *Offenders Community Corrections Act 1963*³ applies to the conviction;~~
 - ~~(e) the repealed section 40 or 126A of the *Child Welfare Act 1947*⁴ applies to the conviction;~~

- ~~_____ (f) the charge was dismissed or the person was discharged under the repealed section 34 or 34B of the *Child Welfare Act 1947*⁴; or~~
- ~~_____ (g) the complaint for the offence was dismissed under the repealed section 24 of the *Children's Court of Western Australia Act 1988*.~~
- ~~_____ (2) For the purposes of this Act a person is convicted of an offence if the person, whether or not he or she is charged with the offence, is dealt with by a juvenile justice team under the *Young Offenders Act 1994* Part 5 Division 2 for the offence.~~

6. ~~_____~~ "Loss", meaning of

~~_____ (1) In this section _____~~

~~_____ "personal item" means _____~~

- ~~_____ (a) an item of clothing or footwear;~~
- ~~_____ (b) spectacles, or contact lenses, used to correct eyesight;~~
- ~~_____ (c) a hearing aid;~~
- ~~_____ (d) artificial teeth;~~
- ~~_____ (e) an artificial limb;~~
- ~~_____ (f) a surgical appliance or implant used to correct or relieve a physical disability or medical condition; or~~
- ~~_____ (g) any other item prescribed by the regulations.~~
- ~~_____ (2) In the case of a victim who is injured, "loss" means _____~~
- ~~_____ (a) expenses actually and reasonably incurred by or on behalf of the victim _____~~
- ~~_____ (i) that arise directly from; or~~
- ~~_____ (ii) that arise in obtaining any report from a health professional or a counsellor in relation to;~~
- ~~_____ the injury suffered by the victim;~~

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- ~~_____ (b) expenses that are likely to be reasonably incurred by or on behalf of the victim for treatment that the victim is likely to need as a direct consequence of the injury suffered by the victim;~~
- ~~_____ (c) loss of earnings suffered by the victim as a direct consequence of the injury suffered by the victim; or~~
- ~~_____ (d) any loss arising from any damage caused as a direct consequence of the commission of the offence to any personal item that was being worn by the victim when he or she suffered the injury.~~
- ~~_____ (3) In the case of a victim who dies, “loss” means any loss suffered by a close relative of the victim for which damages could be awarded to the relative under the *Fatal Accidents Act 1959* if the death of the victim were caused by the wrongful act, neglect or default of another.~~

7. Construction of Act

- ~~_____ Subject to sections 42(3) and (4) and 68, this Act must be construed as being in addition to, and not in derogation of, any other law.~~

Part 2—Applying for compensation

Division 1—General

8.—Offences for which compensation may be sought

— This Act does not apply to or in relation to an offence that was committed before 22 January 1971.

9.—Time limit for making a compensation application

— (1) A compensation application must be made within 3 years after the date on which —

— (a) the offence to which it relates was committed; or

— (b) if it relates to more than one offence, the last of them was committed.

— (2) Despite subsection (1), an assessor may allow a compensation application to be made after the 3 years if he or she thinks it is just to do so and may do so on any conditions that he or she thinks it is just to impose.

10.—Death of person entitled to compensation ends entitlement

— (1) Any entitlement of a victim to compensation under this Act ceases on the death of the victim.

— (2) Any entitlement of a close relative of a deceased victim to compensation under this Act ceases on the death of the close relative.

— (3) Subsections (1) and (2) apply even if —

— (a) a compensation application is made by or on behalf of a victim or a close relative of a deceased victim before the death of the victim or close relative; or

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~~———— (b) — a compensation award in favour of a victim or a close relative of a deceased victim is made after and in ignorance of the death of the victim or close relative.~~

11. — How to make a compensation application

~~———— (1) — A compensation application must be —~~

~~———— (a) — made in writing on a form approved by the Chief Assessor; and~~

~~———— (b) — given to the Chief Assessor.~~

~~———— (2) — If a person entitled to make a compensation application is —~~

~~———— (a) — under 18 years of age — the application may be made on his or her behalf by a parent, or a person acting in place of a parent, of the person;~~

~~———— (b) — a represented person within the meaning of the *Guardianship and Administration Act 1990* — the application may be made on his or her behalf by the person's guardian or administrator appointed under that Act.~~

Division 2 — When and what compensation can be claimed

12. — Proved offence

~~———— (1) — A person who suffers injury as a consequence of the commission of a proved offence may apply for compensation for the injury and any loss also suffered.~~

~~———— (2) — If a person, being a close relative of a person who dies as a consequence of the commission of a proved offence, suffers loss as a result of the death, the personal representative of the deceased may apply for compensation for that loss.~~

~~———— (3) — An assessor must not make a compensation award in respect of a compensation application made under this section unless satisfied —~~

- ~~———— (a) ——— if the application is made under subsection (1) ——— that the claimed injury and any claimed loss has occurred and did so as a consequence of the commission of a proved offence;~~
- ~~———— (b) ——— if the application is made under subsection (2) ——— that the death occurred as a consequence of the commission of a proved offence and that the claimed loss has occurred.~~

13. ——— Alleged offence: acquittal

- ~~———— (1) ——— This section applies if a person is charged with an alleged offence and is found not guilty of it other than on account of unsoundness of mind.~~
- ~~———— (2) ——— If a person ———~~
 - ~~———— (a) ——— suffers injury as a consequence of the commission of the alleged offence; and~~
 - ~~———— (b) ——— claims that the alleged offence was committed but by a person other than the acquitted person;~~~~———— the person may apply for compensation for that injury and any loss also suffered.~~
- ~~———— (3) ——— If ———~~
 - ~~———— (a) ——— a person dies as a consequence of the commission of the alleged offence;~~
 - ~~———— (b) ——— a close relative of the deceased suffers loss as a result of the death; and~~
 - ~~———— (c) ——— the personal representative of the deceased claims that the alleged offence was committed but by a person other than the acquitted person;~~~~———— the personal representative of the deceased may apply for compensation for that loss.~~

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~~—(4)— An assessor must not make a compensation award in respect of a compensation application made under this section unless satisfied that the alleged offence was committed but by a person other than the acquitted person and—~~

~~—(a)— if the application is made under subsection (2)— that the claimed injury and any claimed loss has occurred and did so as a consequence of the commission of the alleged offence;~~

~~—(b)— if the application is made under subsection (3)— that the death occurred as a consequence of the commission of the alleged offence and that the claimed loss has occurred.~~

~~—(5)— If an assessor is satisfied that the person who committed the act or made the omission that constitutes the alleged offence was, at the time of the act or omission, not criminally responsible for it, the alleged offence is to be taken not to have been committed for the purposes of subsection (4) unless the person was not criminally responsible for it by reason of *The Criminal Code* section 27.~~

14.— Alleged offence: acquittal due to unsoundness of mind

~~—(1)— This section applies if a person is found not guilty of a crime, misdemeanour or simple offence (the “**charged offence**”) on account of unsoundness of mind.~~

~~—(2)— A person who suffers injury as a consequence of the act or omission that is alleged to constitute the charged offence may apply for compensation for that injury and any loss also suffered.~~

~~—(3)— If—~~

~~—(a)— a person dies as a consequence of the act or omission that is alleged to constitute the charged offence; and~~

~~—(b)— a close relative of the deceased suffers loss as a result of the death,~~

- ~~the personal representative of the deceased may apply for compensation for that loss.~~
- ~~(4) An assessor must not make a compensation award in respect of a compensation application made under this section unless satisfied —~~
- ~~(a) if the application is made under subsection (2) that the claimed injury and any claimed loss has occurred and did so as a consequence of the act or omission that is alleged to constitute the charged offence;~~
- ~~(b) if the application is made under subsection (3) that the death occurred as a consequence of the act or omission that is alleged to constitute the charged offence and that the claimed loss has occurred.~~

15. Alleged offence: accused not mentally fit to stand trial

- ~~(1) This section applies if —~~
- ~~(a) a person is charged with an alleged offence that is alleged to have been committed on or after 1 January 1986; and~~
- ~~(b) the person is found to be mentally unfit to stand trial for the alleged offence.~~
- ~~(2) A person who suffers injury as a consequence of the commission of the alleged offence may apply for compensation for that injury and any loss also suffered.~~
- ~~(3) If a person, being a close relative of a person who dies as a consequence of the commission of the alleged offence, suffers loss as a result of the death, the personal representative of the deceased may apply for compensation for that loss.~~
- ~~(4) An assessor must not make a compensation award in respect of a compensation application made under this section unless satisfied —~~

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- ~~—— (a) if the application is made under subsection (2) that the claimed injury and any claimed loss has occurred and did so as a consequence of the commission of the alleged offence;~~
- ~~—— (b) if the application is made under subsection (3) that the death occurred as a consequence of the commission of the alleged offence and that the claimed loss has occurred;~~
- ~~—— (5) If an assessor is satisfied that the person who committed the act or made the omission that constitutes the alleged offence was, at the time of the act or omission, not criminally responsible for it, the alleged offence is to be taken not to have been committed for the purposes of subsection (4) unless the person was not criminally responsible for it by reason of *The Criminal Code* section 27.~~

16. ~~Alleged offence: charge not determined~~

- ~~—— (1) This section applies if a person is charged with an alleged offence and ——~~
 - ~~—— (a) the charge is withdrawn or a *nolle prosequi* is entered in respect of it;~~
 - ~~—— (b) the charge is dismissed without a finding as to whether the person charged is guilty or not guilty of it;~~
 - ~~—— (c) the person is acquitted because the prosecutor does not adduce any evidence on the charge;~~
 - ~~—— (d) the person dies before he or she is found guilty or not guilty of the charge; or~~
 - ~~—— (e) for any other reason, the person is not brought to trial on the charge;~~
 - ~~—— and ——~~
 - ~~—— (f) the person charged is not otherwise charged with the alleged offence or tried for it; and~~
 - ~~—— (g) section 15 does not apply.~~

- ~~— (2) A person who suffers injury as a consequence of the commission of the alleged offence may apply for compensation for that injury and any loss also suffered.~~
- ~~— (3) If a person, being a close relative of a person who dies as a consequence of the commission of the alleged offence, suffers loss as a result of the death, the personal representative of the deceased may apply for compensation for that loss.~~
- ~~— (4) An assessor must not make a compensation award in respect of a compensation application made under this section unless satisfied —~~
 - ~~— (a) if the application is made under subsection (2) — that the claimed injury and any claimed loss has occurred and did so as a consequence of the commission of the alleged offence;~~
 - ~~— (b) if the application is made under subsection (3) — that the death occurred as a consequence of the commission of the alleged offence and that the claimed loss has occurred.~~
- ~~— (5) If an assessor is satisfied that the person who committed the act or made the omission that constitutes the alleged offence was, at the time of the act or omission, not criminally responsible for it, the alleged offence is to be taken not to have been committed for the purposes of subsection (4) unless the person was not criminally responsible for it by reason of *The Criminal Code* section 27.~~

17. ~~Alleged offence: no person charged~~

- ~~— (1) This section applies if an alleged offence is committed but no person is charged with the alleged offence.~~
- ~~— (2) A person who suffers injury as a consequence of the commission of the alleged offence may apply for compensation for that injury and any loss also suffered.~~

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- ~~— (3) — If a person, being a close relative of a person who dies as a consequence of the commission of the alleged offence, suffers loss as a result of the death, the personal representative of the deceased may apply for compensation for that loss.~~
- ~~— (4) — An assessor must not make a compensation award in respect of a compensation application made under this section unless satisfied —~~
 - ~~— (a) — if the application is made under subsection (2) — that the claimed injury and any claimed loss has occurred and did so as a consequence of the commission of the alleged offence;~~
 - ~~— (b) — if the application is made under subsection (3) — that the death occurred as a consequence of the commission of the alleged offence and that the claimed loss has occurred.~~
- ~~— (5) — If an assessor is satisfied that the person who committed the act or made the omission that constitutes the alleged offence was, at the time of the act or omission, not criminally responsible for it, the alleged offence is to be taken not to have been committed for the purposes of subsection (4) unless the person was not criminally responsible for it by reason of *The Criminal Code* section 27.~~

Part 3—Dealing with compensation applications

18.—Procedure, general matters

- ~~— (1) — An assessor must determine compensation applications expeditiously and informally having regard to the requirements of justice and this Act.~~
- ~~— (2) — In deciding a compensation application an assessor is not bound by rules or practice as to evidence or procedure but may inform himself or herself in any manner he or she thinks fit.~~

19.—Assessor's general powers

- ~~— (1) — For the purposes of deciding a compensation application, an assessor may do any or all of the following, either on the application of an interested person or on the assessor's own initiative —~~
 - ~~— (a) — amend the application;~~
 - ~~— (b) — give written notice of the application and of any amendment to it to an interested person;~~
 - ~~— (c) — seek and receive any information or evidence that the assessor thinks necessary;~~
 - ~~— (d) — make any inquiries and investigate any matters that the assessor thinks necessary;~~
 - ~~— (e) — request the applicant to provide the assessor with information in relation to the application;~~
 - ~~— (f) — defer deciding the application in order to obtain more information or until information requested under paragraph (c), (d) or (e) is provided.~~
- ~~— (2) — For the purposes of deciding a compensation application, an assessor may give a person a written notice that requires the person to do any or all of the following —~~

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- ~~———— (a) — to give the assessor, within the time specified in the notice, the relevant information described generally or specifically in the notice;~~
- ~~———— (b) — to appear before the assessor at a time and place specified in the notice to give relevant evidence to the assessor;~~
- ~~———— (c) — to produce to the assessor, within the time specified in the notice, any relevant record that is described generally or specifically in the notice and that is in the person's possession or control.~~
- ~~———— (3) — The powers in subsection (1) and (2) may be exercised whether or not a hearing of the compensation application is to be conducted.~~
- ~~———— (4) — An assessor to whom a record is produced may inspect and make a copy of the record and for those purposes may keep the record for a reasonable time.~~
- ~~———— (5) — A person who is given a notice under subsection (2) and who, without a reasonable excuse, does not comply with it commits an offence.~~
- ~~———— Penalty: \$5 000.~~

20. — Victim may be directed to attend doctor etc.

- ~~———— (1) — For the purposes of deciding a compensation application by or on behalf of a person who claims to have suffered an injury as a consequence of the commission of an offence (the “victim”), an assessor, either on the application of an interested person or on the assessor's own initiative, may —~~
 - ~~———— (a) — direct the victim to attend and be examined by a health professional nominated by the assessor; and~~
 - ~~———— (b) — defer deciding the application until the victim has complied with the direction.~~

- ~~— (2) If an assessor directs such a victim to attend and be examined by a health professional —~~
- ~~— (a) the assessor may give the health professional a copy of any report by another health professional about the victim;~~
- ~~— (b) the assessor must request the health professional to provide the assessor with a report of the examination;~~
- ~~— (c) the Chief Assessor must pay the reasonable cost of the examination and the report; and~~
- ~~— (d) any compensation award must be reduced by the amount so paid.~~
- ~~— (3) If a victim does not obey such a direction, the assessor may take account of the fact by reducing any compensation award made in favour of the victim.~~

21. — Applicant may be required to enforce other remedies

- ~~— (1) If an assessor dealing with a compensation application by or on behalf of a victim who suffered injury as a consequence of the commission of an offence is of the opinion that the victim —~~
- ~~— (a) has reasonable grounds for taking proceedings independently of this Act to obtain compensation or damages for all or some of the claimed injury and any claimed loss; or~~
- ~~— (b) may be entitled under a contract of insurance to payment for all or some of that injury or loss;~~
- ~~— the assessor may require the victim to take proceedings to obtain the compensation, damages or payment and may defer the application pending the determination of those proceedings.~~
- ~~— (2) If an assessor dealing with a compensation application by the personal representative of a victim who died as a consequence~~

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~~of the commission of an offence is of the opinion that the personal representative—~~

- ~~— (a) has reasonable grounds for taking proceedings independently of this Act to obtain compensation or damages for all or some of any claimed loss; or~~
- ~~— (b) may be entitled under a contract of insurance to payment for all or some of that loss;~~
- ~~— the assessor may require the representative to take proceedings to obtain the compensation, damages or payment and may defer the application pending the determination of those proceedings.~~

22. CEO may apply for stay of compensation application

- ~~— (1) The CEO may at any time request that a compensation application be stayed because a prosecution for an alleged offence to which the compensation application relates has been or is about to be commenced.~~
- ~~— (2) On such a request an assessor may stay the compensation application for such period as the assessor decides.~~

23. Interim payments

- ~~— (1) If an assessor dealing with a compensation application is satisfied—~~
 - ~~— (a) that a person has incurred or is likely to incur expenses that are or are likely to be a loss in respect of which compensation will be or is likely to be awarded under this Act on the application; and~~
 - ~~— (b) that the making of an interim payment of compensation pending the final determination of the application is warranted;~~
- ~~— the assessor may make an interim payment of such reasonable amount, and on such terms, as the assessor decides.~~

- ~~— (2) — For any one compensation application more than one interim payment may be made but the total of the payments, not including any payment for the funeral of a victim who has died, must not exceed 3% of the maximum amount of compensation that could be awarded if the application were for compensation in relation to a single offence.~~
- ~~— (3) — The total of any interim payments must be deducted from any compensation award that is subsequently made in favour of the victim or close relative.~~
- ~~— (4) — If one or more interim payments are made to a person and a compensation award in favour of that person is subsequently refused, the total of the interim payments becomes a debt due to the State by the person.~~

24. — Hearing to be held if assessor thinks fit

- ~~— (1) — An assessor may conduct a hearing of a compensation application if he or she thinks fit.~~
- ~~— (2) — An assessor, without conducting a hearing of a compensation application may make, or refuse to make, a compensation award in respect of the application.~~

25. — Hearings

- ~~— (1) — If an assessor decides to conduct a hearing of a compensation application, the assessor must cause written notice of the time and place of the hearing to be given to the applicant and to any other interested person that the assessor intends to hear.~~
- ~~— (2) — A person who is notified of a hearing is entitled —~~
 - ~~— (a) — to appear at the hearing and be heard by the assessor;~~
 - ~~— (b) — to appear in person or to be represented by a lawyer, or by a person approved by the assessor; and~~

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~~———— (c) — to present evidence and to call, examine and re-examine witnesses and to cross-examine any witness not called by that person.~~

~~———— (3) — Section 63 applies for the purposes of conducting a hearing.~~

~~———— (4) — A hearing by an assessor must be conducted in private unless the assessor decides that it should be conducted in public.~~

~~———— (5) — If a hearing is conducted in private, the assessor may exclude any person who the assessor does not intend to hear.~~

26. — Awards etc. to be in writing

~~———— A compensation award, or a decision to refuse to make a compensation award, must —~~

~~———— (a) — be made in writing; and~~

~~———— (b) — be given to the applicant concerned.~~

27. — Reasons for decisions

~~———— (1) — If an assessor makes a compensation award, the assessor must give written reasons for making the award to any interested person who, in writing, asks the assessor for the reasons.~~

~~———— (2) — If an assessor refuses to make a compensation award, the assessor must give written reasons for the refusal to —~~

~~———— (a) — the applicant; and~~

~~———— (b) — any other interested person who, in writing, asks the assessor for the reasons.~~

28. — Copy of awards to be sent to CEO

~~———— The Chief Assessor must send a copy of a compensation award to the CEO as soon as practicable after it is made.~~

Part 4—Matters governing compensation awards

29. Assessor's general discretion

- ~~— (1) In deciding whether or not to make a compensation award, or the amount of a compensation award, an assessor may have regard to any factors or circumstances that the assessor thinks are relevant.~~
- ~~— (2) Subsection (1) is subject to sections 12(3), 13(4), 14(4), 15(4), 16(4) and 17(4) and this Part.~~

30. Compensation awards, general

- ~~— (1) On a compensation application in respect of injury suffered by a victim as a consequence of the commission of an offence, an assessor may award such compensation that the assessor is satisfied is just for the injury and for any loss also suffered.~~
- ~~— (2) A compensation award made under subsection (1) may include directions that all or a specified part of the compensation be held on trust for the victim by the person, and on any terms, specified in the award.~~
- ~~— (3) On a compensation application made by the personal representative of a victim who dies as a consequence of the commission of an offence, an assessor may award such compensation that the assessor is satisfied is just for the loss suffered by the one or more close relatives of the deceased.~~
- ~~— (4) A compensation award made under subsection (3) may —~~
 - ~~— (a) apportion the compensation between 2 or more close relatives;~~
 - ~~— (b) include directions that all or a specified part of the compensation be held on trust for a close relative by the person, and on any terms, specified in the award.~~

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~~—(5) An assessor may at any time for good reason amend or cancel a direction made under subsection (2) or (4).~~

31. Maximum for single offence

~~—(1) Subject to sections 32, 33 and 34, the maximum amount that may be awarded in aggregate under sections 30(1) and (3) in favour of one person for a single offence committed on a date in a period set out in the Table to this subsection is set out in the Table opposite that period.~~

Table

Item	Period (all dates inclusive)	Maximum amount
1.	22 January 1971 to 17 October 1976	For an indictable offence: \$2 000 For a simple offence: \$300
2.	18 October 1976 to 31 December 1982	\$7 500
3.	1 January 1983 to 31 December 1985	\$15 000
4.	1 January 1986 to 30 June 1991	\$20 000
5.	1 July 1991 to the day before the day on which this Act comes into operation	\$50 000
6.	On or after the day on which this Act comes into operation	\$75 000

~~—(2) Subject to sections 32, 33 and 34, the maximum amount that may be awarded in aggregate on a compensation application made by the personal representative of a victim who dies as a~~

~~consequence of the commission of an offence committed in a period set out in the Table to subsection (1) is set out in that Table opposite the period.~~

- ~~— (3) The regulations may from time to time amend the Table to subsection (1) by —~~
- ~~— (a) inserting a further item that specifies the maximum amount for offences committed on or after a date specified or referred to in the item, being a date on or after the date on which the regulations come into operation; and~~
 - ~~— (b) making any necessary consequential amendments to any previous item in the Table that do not change the effect of the item.~~

~~32. Maximum for single offence by multiple offenders~~

- ~~— Section 31(1) and (2) apply even if the single offence is committed by 2 or more persons acting in concert.~~

~~33. Maximum for multiple related offences~~

- ~~— (1) For the purposes of this section, 2 or more offences are related to one another if an assessor is satisfied —~~
- ~~— (a) that they were committed at approximately the same time, whether by one person or by 2 or more persons acting in concert; or~~
 - ~~— (b) that they are related for any other reason.~~
- ~~— (2) If as a consequence of the commission of 2 or more related offences, a person —~~
- ~~— (a) suffers injury;~~
 - ~~— (b) suffers loss as the close relative of a victim who dies as a consequence of one of the offences; or~~

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~~————— (c) — suffers both injury as described in paragraph (a) and loss as described in paragraph (b);~~

~~————— the amounts awarded under section 30(1) and (3) in favour of the person for the injury described in paragraph (a) and any loss also suffered and for the loss described in paragraph (b) must not in aggregate exceed the maximum amount that may be awarded for the last one of the offences to be committed.~~

~~— (3) — Despite subsection (2), if a person is a close relative of 2 or more victims who die as a consequence of 2 or more related offences and as a result of 2 or more of those deaths —~~

~~————— (a) — suffers injury;~~

~~————— (b) — suffers loss as the close relative; or~~

~~————— (c) — suffers both injury as described in paragraph (a) and loss as described in paragraph (b);~~

~~————— the amounts awarded under section 30(1) and (3) in favour of the person for the injury described in paragraph (a) and any loss also suffered and for the loss described in paragraph (b) must not in aggregate exceed twice the maximum amount that may be awarded for the last one of the offences to be committed.~~

34. — Maximum for multiple unrelated offences by one offender

~~— (1) — This section applies to and in respect of a compensation application made on or after 23 September 2003.~~

~~— (2) — If as a consequence of 2 or more offences committed by one person that are not related offences within the meaning of section 33(1), another person —~~

~~————— (a) — suffers injury;~~

~~————— (b) — suffers loss as a close relative of a victim who dies as a consequence of one or more of the offences; or~~

~~————— (c) — suffers both injury as described in paragraph (a) and loss as described in paragraph (b);~~

~~the amounts awarded under section 30(1) and (3) in favour of the person for the injury described in paragraph (a) and any loss also suffered and for the loss described in paragraph (b) must not in aggregate exceed twice the maximum amount that may be awarded for the last one of the offences to be committed.~~

35. ~~Mental and nervous shock, compensation for limited to certain persons~~

- ~~(1) This section applies to and in respect of a compensation application made on or after 23 September 2003.~~
- ~~(2) An assessor must not make a compensation award for mental and nervous shock suffered by a victim as a consequence of the commission of an offence, or for any loss in respect of such shock, unless the assessor is satisfied —~~
- ~~(a) that the victim also suffered bodily harm or became pregnant as a consequence of the commission of the offence;~~
 - ~~(b) that the victim was the person against whom, or against whose property, the offence was committed;~~
 - ~~(c) that a person other than the victim died or suffered injury as a consequence of the offence and the victim was personally present when or immediately after the offence was committed;~~
 - ~~(d) that immediately before the offence was committed the victim was the parent or step-parent of a person who died as a consequence of the commission of the offence; or~~
 - ~~(e) that immediately before the offence was committed the victim —~~
 - ~~(i) was a close relative of a person who suffered injury or died as a consequence of the commission of the offence; and~~
 - ~~(ii) was living with that person.~~

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~~— (3) Despite subsection (2), if an assessor is satisfied —~~
~~— (a) that a person died or was injured as a consequence of the~~
~~commission of an offence; and~~
~~— (b) that the death occurred or the injury was suffered when~~
~~the person was committing a separate offence,~~
~~— the assessor must not make a compensation award in favour of a~~
~~close relative of the person for mental and nervous shock~~
~~suffered by the close relative as a result of the death or injury.~~
~~— [Section 35 amended by No. 29 of 2004 s. 5.]~~

36. — No award if compensation likely to benefit offender

~~— An assessor must not make a compensation award in favour of a~~
~~victim, or a close relative of a deceased victim, if the assessor is~~
~~of the opinion —~~
~~— (a) that there is a relationship or connection between the~~
~~person who committed the offence and the victim or~~
~~close relative; and~~
~~— (b) that by reason of the relationship or connection any~~
~~money paid under the award is likely to benefit or~~
~~advantage the person who committed the offence.~~

37. — No award if injury is from motor vehicle in certain cases

~~— (1) In this section —~~
~~— “motor vehicle” has the meaning given by the *Motor Vehicle*~~
~~*(Third Party Insurance) Act 1943.*~~
~~— (2) This section applies in relation to an offence committed on or~~
~~after 1 July 1993.~~
~~— (3) An assessor must not make a compensation award in favour~~
~~of —~~
~~— (aa) an injured victim in respect of the injury or any loss~~
~~suffered by the victim; or~~

- ~~—— (ab) the personal representative of a deceased victim, in respect of any loss suffered by a close relative of a deceased victim,~~
- ~~—— as a consequence of the commission of an offence if satisfied that the injury or death was caused directly by, or by the driving or other use of, a motor vehicle unless ——~~
- ~~—— (a) the motor vehicle was used for the purpose of committing the offence; and~~
- ~~—— (b) the offence is a crime.~~
- ~~—— [Section 37 amended by No. 29 of 2004 s. 6.]~~

38. ~~No award if applicant did not assist investigators~~

- ~~—— An assessor must not make a compensation award in favour of a victim, or a close relative of a deceased victim, if the assessor is of the opinion that the victim or close relative did not do any act or thing which he or she ought reasonably to have done to assist in the identification, apprehension or prosecution of the person who committed the offence.~~

39. ~~No award if victim was engaged in criminal conduct~~

- ~~—— (1) If an assessor is satisfied ——~~
- ~~—— (a) that a person was injured as a consequence of the commission of an offence; and~~
- ~~—— (b) that the injury was suffered when the person was committing a separate offence,~~
- ~~—— the assessor must not make a compensation award in favour of the person.~~
- ~~—— (2) If an assessor is satisfied ——~~
- ~~—— (a) that a person died as a consequence of the commission of an offence; and~~

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~~—— (b) that the death occurred when the person was committing a separate offence;~~

~~—— the assessor must not make a compensation award in favour of a close relative of the person for any loss suffered by the close relative as a result of the death.~~

40. — No award if compensation already awarded or refused

~~—— (1) In this section —~~

~~—— “award” means an order for compensation made under the *Criminal Injuries (Compensation) Act 1970*⁵, or an award of compensation made under the *Criminal Injuries Compensation Act 1982*⁶, the *Criminal Injuries Compensation Act 1985*², or this Act;~~

~~—— “compensation application” means an application for compensation made under the *Criminal Injuries (Compensation) Act 1970*⁵, the *Criminal Injuries Compensation Act 1982*⁶, the *Criminal Injuries Compensation Act 1985*² or this Act.~~

~~—— (2) An assessor must not make a compensation award in favour of a victim who is injured as a consequence of the commission of an offence if —~~

~~—— (a) an award has been made previously in favour of the victim; or~~

~~—— (b) a compensation application by or on behalf of the victim has been refused previously;~~

~~—— in relation to an injury suffered by the victim as a consequence of the offence.~~

~~—— (3) An assessor must not make a compensation award in favour of a close relative of a victim who dies as a consequence of the commission of an offence if —~~

~~—— (a) an award has been made previously in favour of the close relative; or~~

- ~~_____ (b) a compensation application on behalf of the close relative has been refused previously;~~
- ~~_____ in relation to loss suffered by the close relative as a result of the death.~~

41. ~~Behaviour etc. of victim to be considered~~

- ~~_____ In deciding whether or not to make a compensation award, or the amount of a compensation award, in favour of a victim, or a close relative of a deceased victim, an assessor _____~~
- ~~_____ (a) must have regard to any behaviour, condition, attitude, or disposition of the victim that contributed, directly or indirectly, to the victim's injury or death; and~~
- ~~_____ (b) may, if he or she thinks it is just to do so _____~~
- ~~_____ (i) refuse to make a compensation award because of that contribution; or~~
- ~~_____ (ii) reduce the amount that the assessor would otherwise have awarded.~~

42. ~~Insurance payments etc. to be deducted from award~~

- ~~_____ (1) In this section _____~~
- ~~_____ "registered organisation" has the meaning given by the *National Health Act 1953* of the Commonwealth.~~
- ~~_____ (2) An assessor must deduct from a compensation award in relation to any loss suffered by a victim, or a close relative of a deceased victim, any amount that the victim or close relative would, but for this Act, also be entitled to receive under a contract of insurance with a registered organisation in respect of any of that loss.~~
- ~~_____ (3) An assessor must deduct from a compensation award in relation to any injury or loss suffered by a victim, or a close relative of a deceased victim, any amount that the victim or close relative has~~

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~~received by way of compensation or damages, or under a contract of insurance, for the injury or loss.~~

~~— (4) If an assessor is satisfied that a victim, or a close relative of a deceased victim, who has suffered injury or loss will receive an amount by way of compensation or damages, or under a contract of insurance, for the injury or loss, the assessor may deduct the amount from a compensation award in relation to that injury or loss.~~

~~— (5) Despite subsections (3) and (4), in the case of an application by a personal representative of a deceased victim, the amounts described in the *Fatal Accidents Act 1959* section 5(2)(b) and (c) must not be deducted.~~

43. Award to be off set against any amount owed to the State

~~— An assessor may reduce the amount payable to a victim or close relative under a compensation award by an amount not exceeding any amount that the victim or close relative owes the State —~~

~~— (a) under section 23(4);~~

~~— (b) under a compensation reimbursement order; or~~

~~— (c) under section 68.~~

~~— [Section 43 amended by No. 29 of 2004 s. 7.]~~

44. Person who incurs expenses may be paid directly

~~— If a compensation award includes an amount in respect of expenses incurred on behalf of a victim, or a close relative of a deceased victim, by a person who is responsible for the maintenance of the victim or close relative, the award may direct that the amount be paid directly to that person.~~

~~45. Order about reimbursement order may be made~~

- ~~— (1) When or after making a compensation award in respect of an application made under section 12, an assessor who thinks it is just to do so may make —~~
 - ~~— (a) an order barring proceedings under Part 6 in respect of the award; or~~
 - ~~— (b) an order that only a part of the award (specified in the order) may be the subject of proceedings under Part 6.~~
- ~~— (2) At any time, on an application by the CEO, an assessor may cancel an order made under subsection (1).~~

~~Part 5—Paying compensation awarded~~

~~46.—Consolidated Account charged with payment~~

~~—The Consolidated Account is charged with the payment of any compensation awarded under this Act and is appropriated accordingly.~~

~~—[Section 46 amended by No. 77 of 2006 s. 4.]~~

~~47.—Appeal period, payment may be withheld~~

~~—Payment under a compensation award is not to be made until—~~

~~—(a) the period referred to in section 55(3) has elapsed; and~~

~~—(b) any appeal commenced under Part 7 is determined,~~

~~—except with the written authority of an assessor.~~

~~48.—Future treatment expenses, payment of~~

~~—If a compensation award made in favour of a victim who has suffered injury includes an amount in respect of expenses of the kind referred to in section 6(2)(b), the amount is not to be paid unless—~~

~~—(a) the Chief Assessor is given evidence for the purposes of paragraph (b) by or on behalf of the victim; and~~

~~—(b) an assessor is satisfied that the expenses have been reasonably incurred by or on behalf of the victim for treatment that the victim required as a direct consequence of the injury suffered by the victim in consequence of the commission of the offence to which the award relates.~~

Part 6 — Recovering compensation from offenders

48A. — Term used in this Part

~~———— In this Part ———~~

~~———— “compensation award” includes an award for payment of compensation made under the *Criminal Injuries Compensation Act 1985*².~~

~~———— [Section 48A inserted by No. 29 of 2004 s. 8.]~~

49. — CEO may request offender to reimburse compensation

~~———— If ———~~

~~———— (a) — a compensation award is made in respect of any injury or loss suffered as a consequence of an offence; and~~

~~———— (b) — a person is convicted of the offence;~~

~~———— then, subject to any order made under section 45(1), the CEO may give the offender a written notice that requests the offender to pay to the State as a lump sum ———~~

~~———— (c) — the whole, or such part as is specified in the notice, of the amount paid or payable under the award; and~~

~~———— (d) — the whole, or such part as is specified in the notice, of the amount, if any, deducted under section 42(3) or (4) and remitted to the Commonwealth under a law of the Commonwealth.~~

50. — Compensation reimbursement orders, application for

~~———— (1) — At any time after a compensation award is made in relation to an offence the CEO may apply to the Chief Assessor for a compensation reimbursement order against a person who has been convicted of the offence, subject to any order made under section 45(1).~~

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~~—(2) An application may be made under subsection (1) whether or not the CEO has given the offender a notice under section 49.~~

51. Dealing with applications

~~—(1) In this section—~~

~~—“application” means an application made under section 50(1) or 52(3).~~

~~—(2) On receiving an application the Chief Assessor must ensure that—~~

~~—(a) notice of the application is served on the offender; and~~

~~—(b) the CEO and the offender are served with notice of—~~

~~—(i) the time and place of the hearing of the application;~~

~~—(ii) the matters listed in section 52(2) that will be considered at the hearing; and~~

~~—(iii) their entitlements under subsection (3).~~

~~—(3) A person who is notified of the hearing is entitled—~~

~~—(a) to give the assessor, before the hearing, a written submission about any matter relevant to the making of a compensation reimbursement order;~~

~~—(b) to appear at the hearing and be heard by the assessor dealing with the application;~~

~~—(c) to appear in person or to be represented by a lawyer, or by a person approved by the assessor; and~~

~~—(d) to present evidence and to call, examine and re-examine witnesses and to cross-examine any witness not called by that person.~~

~~—(4) Section 63 applies for the purposes of conducting the hearing.~~

~~—(5) The hearing must be conducted in private unless the assessor decides that it should be conducted in public.~~

- ~~— (6) — If a hearing is conducted in private, the assessor may exclude any person who the assessor does not intend to hear.~~
- ~~— (7) — At the hearing an assessor may inquire into —~~
 - ~~— (a) — the matters listed in section 52(2); and~~
 - ~~— (b) — any other matters that the assessor thinks are relevant to the application.~~

52. — Compensation reimbursement order, making

- ~~— (1) — At the hearing of an application made under section 50(1), an assessor may make a compensation reimbursement order that orders the offender to pay to the State an amount specified in the order being —~~
 - ~~— (a) — the whole or part of the amount paid or payable under the relevant compensation award; and~~
 - ~~— (b) — the whole or part of the amount, if any, deducted under section 42(3) or (4) and remitted to the Commonwealth under a law of the Commonwealth,~~~~— in a lump sum or by means of instalments of such amounts and at such times as the order specifies.~~
- ~~— (2) — In deciding whether to make a compensation reimbursement order and the amount to be paid under the order an assessor must have regard to the following —~~
 - ~~— (a) — the extent to which the offender is responsible for the victim's injury or death;~~
 - ~~— (b) — whether the behaviour of the victim at the time of the offence in any way precipitated or provoked the offence;~~
 - ~~— (c) — whether any behaviour, condition, attitude, or disposition of the victim contributed, directly or indirectly, to the victim's injury or death;~~
 - ~~— (d) — the offender's means to satisfy any such order having regard to —~~

- ~~_____ (i) the offender's income, assets and liabilities; and~~
- ~~_____ (ii) the offender's current and prospective employment;~~
- ~~_____ (e) the extent to which the offender is likely to be able to satisfy any such order within a reasonable time.~~
- ~~_____ (3) The CEO or the offender may at any time apply for a compensation reimbursement order to be amended or cancelled.~~
- ~~_____ (4) On an application made under subsection (3), an assessor may amend or cancel the compensation reimbursement order.~~

~~53. Compensation reimbursement order, enforcement of~~

- ~~_____ (1) A compensation reimbursement order may be enforced by lodging a copy of it, certified by an assessor as a true copy, and an affidavit stating to what extent it has not been complied with, with a court of competent jurisdiction.~~
- ~~_____ (2) When a compensation reimbursement order is lodged with a court of competent jurisdiction, the order is to be taken to be a judgment of the court against the offender in favour of the State and may be enforced accordingly.~~

~~54. Reimbursed amounts to be credited to Consolidated Account~~

- ~~_____ Any money paid or recovered under this Part must be credited to the Consolidated Account.~~
- ~~_____ [Section 54 amended by No. 77 of 2006 s. 4.]~~

Part 7—Appeals and referrals

55. Appeal lies to the District Court

- ~~— (1) An interested person may appeal to the District Court against an assessor's decision —
 - ~~— (a) to make or to refuse to make a compensation award;~~
 - ~~— (b) as to the amount of a compensation award.~~~~
- ~~— (2) The CEO or an offender may appeal to the District Court against an assessor's decision —
 - ~~— (a) to make or to refuse to make, or to cancel or amend or to refuse to cancel or amend, a compensation reimbursement order under section 52;~~
 - ~~— (b) as to the amount of a compensation reimbursement order made or amended under section 52.~~~~
- ~~— (3) The appeal must be commenced within 21 days after the date of the decision.~~
- ~~— (4) If it is just to do so, the District Court may allow an appeal to be commenced after the 21 days, and may do so even if the period has expired.~~
- ~~— (5) The appeal must be conducted in accordance with rules of court made by the District Court.~~

56. Dealing with appeals

- ~~— (1) The District Court must decide an appeal under section 55 on the evidence and information that was in the possession of the assessor concerned but may admit or receive additional evidence or information.~~
- ~~— (2) On an appeal under section 55 the District Court may do any or all of the following —~~

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- ~~_____ (a) exercise any power of an assessor under this Act, other than a power under section 19(1)(b), 24(1) or 25;~~
- ~~_____ (b) confirm, vary or reverse the assessor's decision, either in whole or in part;~~
- ~~_____ (c) make any order that an assessor could make under this Act;~~
- ~~_____ (d) order an unsuccessful party to the appeal to pay a successful party's costs as set by the Court in accordance with the scale of costs prescribed by the regulations;~~
- ~~_____ (e) refer a question of law that arises in the appeal to the Court of Appeal for determination;~~
- ~~_____ (f) make any necessary consequential order.~~
- ~~_____ [Section 56 amended by No. 45 of 2004 s. 37.]~~

57. District Court decision is final

- ~~_____ The District Court's decision on an appeal made under this Part is not appealable.~~

58. Assessor may refer question of law to Court of Appeal

- ~~_____ An assessor may refer a question of law that arises in relation to a compensation application or the interpretation of this Act to the Court of Appeal for determination.~~
- ~~_____ [Section 58 amended by No. 45 of 2004 s. 37.]~~

Part 8—Administrative matters

59. Chief Assessor and assessors, appointment of etc.

~~Schedule 1 has effect.~~

60. Chief Assessor may allocate work to assessors

~~The Chief Assessor may allocate and reallocate compensation applications to or among himself or herself and the other assessors to be dealt with in accordance with this Act.~~

61. Administrative staff

~~Any person needed to assist the assessors must be appointed under the *Public Sector Management Act 1994* Part 3.~~

62. Annual report and other reports

- ~~(1) Before 1 October in each year, the Chief Assessor must give the Minister a report about the operation of this Act during the financial year that ended on 30 June in that year.~~
- ~~(2) At any other time the Chief Assessor may give the Minister a report about the operation of this Act.~~
- ~~(3) The Minister must cause any report given to him or her under this section to be laid before each House of Parliament within 15 sitting days of that House after receiving it.~~

Part 9—Miscellaneous

63. Witnesses at hearings of applications

~~(1) In this section—~~

~~“application” means a compensation application, or an application made under section 50(1) or 52(3);~~

~~“witness” means a person who is given a notice under subsection (2).~~

~~(2) For the purposes of conducting a hearing of an application, an assessor, on the application of a person who has been given notice of the hearing or on the assessor’s own initiative, may give a person a written notice that requires him or her to appear at the hearing and do one or both of the following—~~

~~(a) to give oral evidence;~~

~~(b) to produce any record that is described generally or specifically in the notice and that is in his or her possession or control.~~

~~(3) An assessor may administer an oath or affirmation to a witness.~~

~~(4) An assessor may ask a witness any question.~~

~~(5) A witness commits an offence if he or she, without a reasonable excuse, does not—~~

~~(a) appear in accordance with a notice given to the person under subsection (1);~~

~~(b) take an oath or affirmation as required by an assessor; or~~

~~(c) give oral evidence or produce a record as required by an assessor.~~

~~Penalty: \$5 000.~~

~~(6) A witness who complies with a notice given to the witness under subsection (2) is entitled to a reasonable amount, decided by an assessor, in respect of any expenses incurred or earnings lost by the witness in so complying.~~

~~— (7) If an amount is paid under subsection (6) in relation to a witness at a hearing of an application that relates to an offence of which a person is convicted, an assessor may order the offender to pay the State the whole or part of the amount.~~

~~— (8) Section 53 applies to an order made under subsection (7) as if the order were a compensation reimbursement order.~~

64. ~~Publicity, assessor may restrict~~

~~— (1) In this section—~~

~~— “proceedings” means—~~

~~— (a) a compensation application or an application made under Part 6;~~

~~— (b) proceedings on a hearing of such an application; or~~

~~— (c) a decision, award or order made by an assessor on such an application, or the reasons for it;~~

~~— “specified” means specified in an order made under this section.~~

~~— (2) If satisfied that it is in the interests of justice to do so, an assessor may make an order in respect of specified proceedings that prohibits the publication of the proceedings, or of a report or summary of them, or of a specified part or particular of them.~~

~~— (3) Without limiting subsection (2), an assessor may make an order that prohibits the publication of any particular of specified proceedings that is likely to lead members of the public to identify a specified person who is—~~

~~— (a) a victim;~~

~~— (b) a close relative of a deceased victim; or~~

~~— (c) a person who committed an offence to which any proceedings relate, whether or not he or she has been convicted of it.~~

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~~— (4) In making an order under this section an assessor must have regard to the desirability of the public being informed of the nature of applications made under this Act and the principles applied in deciding them.~~

~~— (5) A person who contravenes an order made under this section commits an offence.~~

~~— Penalty:~~

~~— (a) for a natural person: \$5 000;~~

~~— (b) for a body corporate: \$25 000.~~

~~65. Immunity for assessors, lawyers and witnesses~~

~~— (1) An assessor has, in the performance of his or her functions as an assessor, the same protection and immunity as a judge of the Supreme Court has in performance of his or her duties as a judge.~~

~~— (2) A person representing a person at a hearing conducted by an assessor under this Act has the same protection and immunity as a lawyer has in representing a party in proceedings in the Supreme Court.~~

~~— (3) A person appearing as a witness before an assessor has the same protection and immunity as a witness has in proceedings in the Supreme Court.~~

~~66. Protection of assessors from personal liability~~

~~— (1) In this section, a reference to the doing of anything includes a reference to an omission to do anything.~~

~~— (2) A civil action does not lie against a person for anything that the person does, while he or she is an assessor, in good faith in the performance or purported performance of a function of an assessor.~~

~~(3) The Crown is also relieved of any liability that it might otherwise have had for another person having done anything as described in subsection (2).~~

~~67. Costs~~

~~An assessor does not have power to award costs.~~

~~68. Repayment to State of insurance payments etc.~~

~~(1) If~~

~~(a) a compensation award is made in respect of any injury or loss suffered by a victim or a close relative of a deceased victim;~~

~~(b) the victim or close relative also receives or recovers in respect of that injury or loss an amount under a contract of insurance or by way of damages or compensation, otherwise than under this Act; and~~

~~(c) that amount is not deducted under section 42(3) or (4);~~

~~an amount equal to the lesser of~~

~~(d) the amount awarded to the victim or close relative under the compensation award; or~~

~~(e) the amount referred to in paragraph (b);~~

~~is a debt due to the State by the victim or close relative or by any person who holds the amount referred to in paragraph (b) on behalf of the victim or close relative.~~

~~(2) In this section~~

~~“compensation award” includes an award for payment of compensation made under the *Criminal Injuries Compensation Act 1985*²;~~

~~[Section 68 amended by No. 29 of 2004 s. 9.]~~

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~~69. Debts due to the State, recovery of~~

- ~~(1) A debt due to the State under section 23(4) or 68 may be recovered in a court of competent jurisdiction.~~
- ~~(2) Any such debt that is paid or recovered must be credited to the Consolidated Account.~~
- ~~[Section 69 amended by No. 77 of 2006 s. 4.]~~

~~70. False information, offence of giving~~

- ~~(1) In this section~~
- ~~“prescribed information” means any information given~~
- ~~(a) in a compensation application;~~
- ~~(b) in response to a request made, or a notice given, under section 19; or~~
- ~~(c) in an application made under section 50(1) or 52(3).~~
- ~~(2) A person who gives any prescribed information knowing that it is false in a material particular commits an offence.~~
- ~~Penalty: \$5 000.~~
- ~~(3) A court that convicts a person of an offence under subsection (1) in respect of information given in or in relation to a compensation application may, in addition to the sentence it imposes, order the person to repay to the State the whole or a part of any amount paid to the person under a compensation award made on the compensation application.~~

~~71. Limitation period for prosecutions~~

- ~~A prosecution for an offence under this Act must be commenced within 2 years after the date on which the offence is alleged to have been committed.~~

~~72. Regulations~~

- ~~— (1) The Governor may make regulations prescribing all matters that are required or permitted by this Act to be prescribed or are necessary or convenient to be prescribed for giving effect to the purposes of this Act.~~
- ~~— (2) Without limiting the generality of subsection (1), regulations may provide for the substituted service on a person of notices issued under section 19, 25, 51(2) or 63, or on an appeal, in cases where it is impossible or impracticable to give the notice to the person.~~

~~73. Repeal, transitional provisions and consequential amendments~~

- ~~— Schedule 2 has effect.~~

Schedule 1—Provisions about assessors

[s. 59]

1. Qualifications for appointment

~~— A person is qualified to be appointed under clause 2 as the Chief Assessor or as an assessor if he or she —~~

~~— (a) is a lawyer; or~~

~~— (b) is a barrister or solicitor of the Supreme Court of another State or a Territory,~~

~~— of at least 8 years' standing and practice.~~

2. Appointment

~~— (1) The Governor may appoint a person who is qualified under clause 1 as the Chief Assessor of Criminal Injuries Compensation.~~

~~— (2) The Governor may appoint a person who is qualified under clause 1 as an Assessor of Criminal Injuries Compensation.~~

~~— (3) The Governor may appoint as many persons under subclause (2) as are needed to deal with compensation applications in accordance with this Act.~~

3. Conditions of appointment

~~— (1) The term of an assessor's appointment must not exceed 5 years.~~

~~— (2) A person may be re-appointed as an assessor.~~

~~— (3) An assessor may be appointed to work full time or other than full time.~~

~~— (4) An assessor is entitled to such remuneration (as defined in the *Salaries and Allowances Act 1975*) and allowances as are determined from time to time by the Governor on the recommendation of the Minister for Public Sector Management.~~

4. Oath of office

~~Before beginning to perform the duties of his or her office, an assessor must take an oath, before a judge of the Supreme Court, that he or she will faithfully and impartially perform the duties.~~

5. Termination and resignation

~~(1) The Governor may terminate an assessor's appointment if satisfied the assessor—~~

- ~~(a) is incapable of properly performing the duties of an assessor;~~
- ~~(b) has shown himself or herself to be incompetent to properly perform, or has neglected, those duties; or~~
- ~~(c) has been guilty of misconduct.~~

~~(2) An assessor may resign from office at any time by notifying the Governor in writing.~~

Criminal Injuries Compensation Act 2003

Schedule 2 Repeal, transitional and consequential provisions

Division 1 Repeal

cl. 1

**Schedule 2—Repeal, transitional and
consequential provisions**

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Division 1—Repeal

1. ~~Criminal Injuries Compensation Act 1985 repealed~~

~~The Criminal Injuries Compensation Act 1985 is repealed.~~

Division 2—Transitional provisions

2. ~~Terms used in this Division~~

~~(1) In this Division—~~

~~“commencement” means the commencement of this Act;~~

~~“repealed Act” means the Criminal Injuries Compensation Act 1985.~~

~~(2) This Division does not affect the operation of the Interpretation Act 1984 Part V but if there is a conflict or inconsistency between this Division and that Part, this Division prevails.~~

3. ~~Pending applications~~

~~(1) If immediately before commencement an application made under the Criminal Injuries (Compensation) Act 1970⁵ is pending before a court, then on commencement the application is to be dealt with under that Act despite the repeal of section 50(5) of the repealed Act.~~

~~(2) If immediately before commencement an application made under the Criminal Injuries Compensation Act 1982⁶ is pending before the person who holds the office of Assessor or acting Assessor under that Act, then on commencement the application is to be dealt with by an assessor under this Act and this Act applies to and in relation to the application.~~

~~(3) If immediately before commencement an application made under the repealed Act is pending before the person who holds the office of Chief Assessor or acting Chief Assessor or an Assessor under that Act, then on commencement the application is to be dealt with by an~~

~~assessor under this Act and this Act applies to and in relation to the application.~~

- ~~—(4)— If immediately before commencement an appeal, or an application that has been referred to the District Court, under the *Criminal Injuries Compensation Act 1982* Part VI⁶ is pending in the District Court, then on commencement the appeal or application is to be dealt with by the District Court under that Part and the applicable rules of court despite the repeal of section 50(4) of the repealed Act.~~
- ~~—(5)— If immediately before commencement an appeal, or an application that has been referred to the District Court, under the repealed Act Part VI is pending in the District Court, then on commencement the appeal or application is to be dealt with by the District Court under that Part and the applicable rules of court despite the repeal of that Act.~~

4. Appeals started after commencement

- ~~— If after commencement an appeal is commenced in the District Court in relation to a decision made before commencement under the *Criminal Injuries Compensation Act 1982*⁶ or the repealed Act, the District Court must not make any order on the appeal that could not have been made under the law applicable at the time the decision appealed against was made.~~

5. Assessors

- ~~—(1)— If immediately before commencement a person holds the office of Chief Assessor referred to in the repealed Act section 5, then on commencement the person is to be taken to have been appointed under Schedule 1 clause 2(1) as the Chief Assessor for the term and on the terms and conditions of the appointment under the repealed Act.~~
- ~~—(2)— If immediately before commencement a person holds the office of an acting Chief Assessor referred to in the repealed Act section 5A, then on commencement the person is to be taken to have been appointed under the *Interpretation Act 1984* section 52 to act as the Chief Assessor under this Act for the term and on the terms and conditions of the appointment under the repealed Act.~~

Criminal Injuries Compensation Act 2003

Schedule 2 Repeal, transitional and consequential provisions

Division 2 Transitional provisions

cl. 6

~~— (3) — If immediately before commencement a person holds the office of an Assessor referred to in the repealed Act section 5B, then on commencement the person is to be taken to have been appointed under Schedule 1 clause 2(2) as an Assessor for the term and on the terms and conditions of the appointment under the repealed Act.~~

6. — Annual reports

~~— (1) — If this Act commences before 1 January 2004, then despite section 62(1) the Chief Assessor must give the Minister a report about the operation of this Act during the period of 1 January 2003 to 30 June 2004 (both dates inclusive) before 1 October 2004.~~

~~— (2) — If this Act commences on or after 1 January 2004, then —~~

~~— (a) — despite its repeal, section 48 of the repealed Act applies to the year ending on 31 December 2003; and~~

~~— (b) — despite section 62(1) of this Act the Chief Assessor must give the Minister a report about the operation of this Act during the period of 1 January 2004 to 30 June 2004 (both dates inclusive) before 1 October 2004.~~

~~[Division 3 omitted under the Reprints Act 1984 s. 7(4)(e).]~~

Notes

[†] This is a compilation of the *Criminal Injuries Compensation Act 2003* and includes the amendments made by the other written laws referred to in the following table^{†a}. The table also contains information about any reprint.

Compilation table

Short title	Number and year	Assent	Commencement
<i>Criminal Injuries Compensation Act 2003</i>	77 of 2003	15 Dec 2003	s. 1 and 2: 15 Dec 2003; Act other than s. 1 and 2: 1 Jan 2004 (see s. 2 and Gazette 30 Dec 2003 p. 5722)
<i>Criminal Injuries Compensation Amendment Act 2004</i> [†]	29 of 2004	14 Oct 2004	14 Oct 2004 (see s. 2)
<i>Acts Amendment (Court of Appeal) Act 2004 s. 37</i>	45 of 2004	9 Nov 2004	1 Feb 2005 (see s. 2 and Gazette 14 Jan 2005 p. 163)
<i>Psychologists Act 2005 s. 108</i>	28 of 2005	12 Dec 2005	4 May 2007 (see s. 2 and Gazette 4 May 2007 p. 1963)
<i>Financial Legislation Amendment and Repeal Act 2006 s. 4</i>	77 of 2006	21 Dec 2006	1 Feb 2007 (see s. 2(1) and Gazette 19 Jan 2007 p. 137)
Reprint 1: The Criminal Injuries Compensation Act 2003 as at 7 Sep 2007 (includes amendments listed above)			

^{†a} On the date as at which this compilation was prepared, provisions referred to in the following table had not come into operation and were therefore not included in this compilation. For the text of the provisions see the endnotes referred to in the table.

Provisions that have not come into operation

Short title	Number and year	Assent	Commencement
Criminal Law and Evidence Amendment Act 2008 s. 59⁸	2 of 2008	12 Mar 2008	To be proclaimed (see s. 2)

² ~~The Criminal Injuries Compensation Act 1985 was repealed by s. 73 of this Act.~~

³ ~~The Offenders Community Corrections Act 1963 was repealed by the Sentencing (Consequential Provisions) Act 1995 s. 77.~~

⁴ ~~The Child Welfare Act 1947 was repealed by the Children and Community Services Act 2004 s. 250(1)(a).~~

⁵ ~~The Criminal Injuries (Compensation) Act 1970 was repealed by the Criminal Injuries Compensation Act 1982 s. 43(1).~~

⁶ ~~The Criminal Injuries Compensation Act 1982 was repealed by the Criminal Injuries Compensation Act 1985 s. 50(1).~~

⁷ ~~The Criminal Injuries Compensation Amendment Act 2004 s. 10 reads as follows:~~

~~“~~

~~10. Validation~~

~~(1) An order to pay moneys under section 39 of the Criminal Injuries Compensation Act 1985, made on or after 1 January 2004, is deemed to have been made under the Criminal Injuries Compensation Act 2003, as amended by this Act.~~

~~(2) An amount received or recovered as described in section 68 of the Criminal Injuries Compensation Act 2003, on or after 1 January 2004, is deemed to create a debt due under the Criminal Injuries Compensation Act 2003, as amended by this Act.~~

~~(3) A notice given under the Criminal Injuries Compensation Act 1985, on or after 1 January 2004, is deemed to have been given under the Criminal Injuries Compensation Act 2003, as amended by this Act.~~

~~”.~~

⁸— On the date as at which this compilation was prepared, the *Criminal Law and Evidence Amendment Act 2008* s. 59 had not come into operation. It reads as follows:

“

~~59. Criminal Injuries Compensation Act 2003 amended~~

~~— (1) The amendment in this section is to the Criminal Injuries Compensation Act 2003.~~

~~— (2) Section 16(1)(a) is amended by inserting after “it” —~~

~~— “ or the prosecution of it is discontinued ”.~~

~~”.~~

